



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 15
TUESDAY, 11 AUGUST 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 15

Tuesday, August 11, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 10:00 a.m., Tuesday, August 11, 2026, the Senate President, Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Senator-Judge Vicente C. Sotto III led the prayer, to wit:

Almighty and merciful God, we come before You with humility as our nation enters a solemn and consequential moment in the impeachment proceedings.

We pray that You guide every person entrusted with this constitutional process, especially each senator who will sit as a judge. Grant us who are gathered in this august Chamber integrity, good faith, courage, and sound judgment.

Keep our hearts free from political pressure, personal interests, prejudice, anger, and fear. May we seek not what is convenient or popular but what is right, just, and faithful to the truth.

Dear Lord, Father God, remind each of us that our duty is not to any individual, party, or faction. Our duty is to You, to the Filipino people, and to the Constitution.

Give us the wisdom to weigh the evidence carefully, the fairness to listen with an open mind, and the courage to make decisions according to our conscience and the law.

May truth prevail over rumor, facts over speculation, and justice over politics. Let every proceeding be conducted with dignity, fairness, and respect for the rule of law.

Dear Lord, protect our country from division and hatred. Give our people patience, discernment, and faith in the proper institutions of our republic.

May Your wisdom guide us, may Your justice lead us, and may Your truth prevail.

Amen.



ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Padilla, R.
Cayetano, P. S.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Marcos, I. R.	Zubiri, J. M. F.

With 18 senator-judges present, the Chair declared the presence of a quorum.

Senator-Judge Go was also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judges Cayetano (A) and Dela Rosa were absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of *Journal* No. 14 of the Senate sitting as an Impeachment Court on August 5, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, entitled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Panel of Prosecutors.

Atty. Kristine Ferrer entered the same appearances on behalf of the Respondent.

Rep. Chua requested that Atty. Lorna P. Kapunan be recognized for the continuation of direct examination of witness.

MANIFESTATION OF ATTORNEY KAPUNAN

Attorney Kapunan recalled that when the impeachment trial adjourned on August 5, 2026, the

Prosecution had moved, and subsequently modified its motion, to allow the 4,492 documents to be presented before the Clerk for Court for purposes of comparison. She recalled that the Presiding Officer had directed the parties to make themselves available on Thursday and Friday of the previous week, and for the parties to mutually agree only on the time of the meeting. Notwithstanding the directive, however, she lamented that the Counsel for the Respondent failed to coordinate with the Prosecution despite repeated text messages from the latter on Wednesday and Thursday. She said that it was only at 5:38 p.m. on Thursday that the Counsel for Respondent informed the Prosecution that they would be available on August 14.

Attorney Kapunan argued that meeting on August 14 would no longer serve any purpose considering that the trial was already scheduled for August 10. She said that Counsel for the Respondent acted in bad faith for asserting that the Presiding Officer merely directed the parties to agree on a date and time of the meeting. She said that the Clerk of Court was also waiting over the weekend for notice about the meeting.

She further stated that, as a last attempt that morning, the Prosecution approached the Counsel for the Respondent and in the remaining hour before the trial, proposed to begin comparing the documents but was again declined, with the latter maintaining there was no need to conduct the comparison as the Prosecution could simply present summaries — consistent with the position of the Defense during pre-trial when the Respondent's counsel refused to stipulate to the documents on the ground that copies were not faithful reproductions.

Attorney Kapunan then stated that since the matter involved 4,492 documents, the Prosecution, as basis for presenting evidence, would proceed by briefly reviewing the documents and identifying the witness' summaries and tabulations, consistent with Rule 130, Sections 3(c) and 7 of the *Rules of Court*.

Asked by the Presiding Officer whether the Prosecution witness, Ms. Xylene Mae Del Campo, State Auditor of the Intelligence and Confidential Funds Audit Office (ICFAO), Commission on Audit (COA), had prepared tabulations or summaries of the acknowledgment receipts (ARs) covering the first to third quarters of 2023 for the Office of the Vice President (OVP) and Department of Education (DepEd), Attorney Kapunan replied in the affirmative. For the OVP, she stated that Ms. Del Campo had tabulations and summaries of acknowledgement receipts covering: 1st quarter (February 6 to March 29, 2023) - 519 ARs; 2nd quarter (April 25 to June 30, 2023) - 530 ARs; and 3rd quarter (July 14 to September 30, 2023) - 774 ARs, for a total 1,823 ARs. In addition, she said that Ms. Del Campo would confirm Attorney Wamil's tabulation covering December 21 to 31, 2022 consisting of 845 ARs, bringing the total OVP ARs to 2,668.

For the DepEd, she stated that Ms. Del Campo had tabulations covering: 1st quarter (February 20 to March 30, 2023) - 561 ARs; 2nd quarter (April 25 to June 30, 2023) - 619 ARs; and 3rd quarter (July 14 to September 30, 2023) - 644 ARs, or a total of 1,824 DepEd ARs.

Noting a total of 4,492 documents which the Counsel for the Respondent had declined to stipulate, Attorney Kapunan said that the Prosecution was constrained to present Ms. Del Campo and the corresponding tabulations before the Court.

The Presiding Officer affirmed that Ms. Del Campo could testify based on the tabulations in her possession, pursuant to Rule 130, Section 3(c), in relation to Section 7, as an exception to the original document rule.

Apart from the tabulations, Attorney Kapunan stated that the Prosecution would present folders containing the ARs, which would not be individually identified; instead, the witness would simply go through the folders and flip through the documents for purposes of presentation.

As regards any claim, she stressed that the Respondent had been given the opportunity to examine and compare the documents but declined to do so, citing either insufficient counsel or available time. She emphasized that Counsel for the Respondent would nonetheless have the opportunity to examine and compare the documents when formally offered in evidence.

The Presiding Officer noted Attorney Kapunan's manifestation.

MANIFESTATION OF ATTORNEY FERRER

Attorney Ferrer expressed appreciation for the Prosecution's willingness to proceed under Rule 130, Section 7, which she said would help expedite the proceedings. She explained that in her view, there was no need for the parties to compare the exhibits beforehand because their authenticity would ultimately be determined by the Court upon the Prosecution's formal offer of evidence, at which point, the Counsel for the Respondent counsel would be given an opportunity to comment and raise objections.

Attorney Ferrer also clarified that she had not stipulated as to the competency of Ms. Del Campo to identify the exhibits because she was not familiar with the witness and the extent of her examination of the documents, particularly since she merely took over the work previously prepared by Attorney Wamil.

Considering that Rule 130, Section 7 allows a witness to testify on the basis of a summary or tabulation, which may establish the witness's familiarity with and examination of the documents covered by the summary, Attorney Ferrer said this was the basis for suggesting that the Prosecution proceed through the witness' summaries and tabulations rather than individually identifying all the documents.

Attorney Ferrer said that the Respondent would not object to the number of documents the Prosecution would use as samples for identification, since the rule does not require the Respondent to stipulate to their authenticity before the rule may be invoked. She further said that based on experience, she estimated that the Prosecution could complete the identification of the documents for an entire quarter in less than 10 minutes. She added that Counsel for the Respondent would not object to the Prosecution's use of Rule 130, Section 7 or to the manner by which the Prosecution intended to present the documents, subject to the right of the Counsel for the Respondent to cross-examine the witness.

RULING OF THE PRESIDING OFFICER

The Presiding Officer clarified that a ruling was indeed made for the parties to try and meet on Thursday or Friday but the same did not push through either due to unavailability of Counsel for the Respondent or to inclement weather. In lieu of a meeting, he directed Counsel for the Respondent to submit copies of its marked exhibits within the day or, at the latest, the following day, so the Court itself could compare them with the Prosecution's pre-marked exhibits. Attorney Ferrer undertook to comply with the directive.

As to the witness, Ms. Xylene Mae Del Campo, the Presiding Officer noted Counsel for the Respondent's manifestation that it would not object to the presentation of a table and/or summary pursuant to Rule 130, Section 7, in relation to Section 3(c).

For her part, Attorney Kapunan manifested that the summary would only establish that the documents submitted by the Defense to the COA were the same documents used by the COA in issuing the AOMs, notices of suspension, and notices of disallowance. She however expressed concern that when subsequent witnesses testify on specific acknowledgment receipts, Counsel for

the Respondent might object on the ground that these had not been identified. She thus sought a stipulation that the Defense would not object to the presentation of specific acknowledgment receipts through subsequent witnesses.

The Presiding Officer clarified that the witnesses would, in any event, be subject to cross-examination, during which Counsel for the Defense may raise any discrepancies between the parties' copies. By then, the Court, would already have both sets of documents and could make the appropriate ruling.

Attorney Kapunan further manifested that the Prosecution was amenable to using the Defense exhibits, thereby obviating the need for comparison. The Presiding Officer however explained that the Court had yet to receive copies of the Defense exhibits, and that obtaining them would best facilitate the process. Once received, copies would be furnished to the Prosecution for use at the appropriate time.

Attorney Ferrer clarified that the use of the Defense exhibits would not dispense with the need to establish the competence of the Prosecution's witnesses to identify the documents, absent which, the exhibits would be rendered useless.

PRESENTATION OF WITNESS

Attorney Kapunan called Ms. Del Campo to the witness stand. The Presiding Officer reminded the witness that she remained under the same oath administered during the previous trial proceedings on Wednesday, August 5, 2026.

The Presiding Officer also stated that there was no need for the witness to go through the individual ARs to establish that she prepared her table and/or summary based on the 4,492 ARs, as this was already understood by the Court. He clarified that the witness only needed to refer to a particular AR if the Prosecution would request its identification.

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

Attorney Kapunan continued the direct examination of the witness, as follows:

Ms. Kapunan. With the permission of this Honorable Court, good morning. Good morning to the Presiding Officer, to the Impeachment Judges, and good morning, Counsel for the Respondent.

Good morning, Madam Witness. Would you like to come closer to the mic? *Parang nagkukuwentuhan lang tayo, ano?* Be comfortable, okay?

Ms. Del Campo. *Opo.*

Ms. Kapunan. Now, we will continue with your—where we broke off at the last hearing, when you were here and we had preliminary questions, *ano?* But I regret that I have to ask you again because just earlier, the Counsel for the Respondent is questioning your competence.

Madam Witness, can you remind us again, how long have you been with the COA?

Ms. Del Campo. I have been with COA for the past 11 years. Actually *po*, *magti*-twelve years *na po*.

Ms. Kapunan. As COA?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. And what was your educational background, Madam Witness? *Saan ka nag-aral?*

Ms. Del Campo. I earned *po* my bachelor's degree, Bachelor of Science in Accountancy, from Saint Louis University *po*.

Ms. Kapunan. *At pagkatapos mo nag-graduate sa Saint Louis University, saan ka nagtrabaho?*

Ms. Del Campo. *Ang una ko pong naging trabaho* is as junior auditor *sa isang* private firm *po sa* Baguio City.

Ms. Kapunan. And after that?

Ms. Del Campo. After two years *po*, *nag-apply na po ako sa* COA *at doon na po ako nag-start noong* August 26, 2014.

Ms. Kapunan. August 26?

Ms. Del Campo. 2014 *po*.

Ms. Kapunan. Okay. And earlier, you said that you were in COA-ICFAO, correct?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. And what particular activity or duties did you have with this office?

Ms. Del Campo. *Ang mga naging duties ko po sa* COA-ICFAO is, first, to conduct post-audit of the liquidation documents of various government agencies *sa liquidation po nila sa* intelligence and confidential fund, and draft *po* an Audit Observation Memorandum, Notice of Suspension, or Notice of Disallowance *po* as may be warranted under Rules and Regulations on Settlement of Accounts, and after *pong mag-respond ng* agency, *ako rin po ang nag-e-evaluate ng mga Responses po sa mga* AOM *at* Notice of Suspension.

Ms. Kapunan. So, based on your narration, 11 years *mo na ginagawa ito? Nag-i-issue ng* Audit Observation Memorandum, Notice of Suspension, Notice of Disallowance, *at pinag-aaralan din ang mga Response ng mga* national agencies *na covered ng* confidential and intelligence fund.

Ms. Del Campo. Yes *po*, *tama po*.

Ms. Kapunan. Tell us, Madam Witness, how many of these national agencies, local government units, public officials have you conducted a post audit?

Ms. Del Campo. *Iyong sa* national government agencies *po*, more than 20 *na*. *Sa* local *po*, *madami-dami na rin po*, *mga* more than 50. *Sa* GOCCs *naman po*, *mga* less than 10, *mga* five to 10 *po*.

Ms. Kapunan. So more than 20 national agencies, *tama?*

Ms. Del Campo. *Opo*.

Ms. Kapunan. More than 30, 50, local government units?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. And—?

Ms. Del Campo. *Mga* GOCCs *po*, *mga* less than 10.

Ms. Kapunan. Okay. So when you took over, *noong ikaw ang nag-take over kay* Attorney Wamil, *noong* February when he retired or was transferred to another COA office in February 2024, you were then at that time also in COA-ICFAO.

Ms. Del Campo. Yes *po*. *Tama po*.

Ms. Kapunan. Okay. And *ano naman ang* participation *mo*, if any, *dito sa* pag-post audit *ng* confidential funds *ng* Office of the Vice President *at ng* DepEd secretary?

Ms. Del Campo. *Sa* Office of the Vice President *po*, *ang naging participation ko po is* doon *sa—for the period* December 21 to 31, 2022, *ako po ang nag-evaluate ng* Response *nila sa* Notice of Suspension. *Doon naman po sa* first to third quarters *ng* 2023, *ako po ang nag-evaluate sa* Response *nila sa mga* Audit Observation Memorandum. *Sa* DepEd *naman po*, *ako po ang nag-evaluate ng Responses nila para doon sa dalawang* AOM *for the first to third quarters of* 2023.

Ms. Kapunan. Okay. Madam Witness, you took over the functions or you took over *iyong mga in-audit ni Attorney Wamil*. Are you aware *na gumawa siya ng isang tabulation tungkol sa acknowledgment receipts for the last quarter of the Office of the Vice President, December 21 to 31?* Are you aware *na mayroong ginawang tabulation si Attorney Wamil?*

Ms. Del Campo. Yes *po*, aware *po ako sa tabulation ni Mr. Wamil*.

Ms. Kapunan. If this tabulation is shown to you—and for purposes of identification, Your Honor, this has been previously marked in evidence as P-I-29 for the Prosecution. Showing to you, Madam Witness, please go over this tabulation prepared, and may we ask permission for attorney—our associate, Atty. Jay dela Cruz — to be allowed to present this to the witness?

The Presiding Officer. Assisting Counsel of the parties may approach.

Ms. Kapunan. For the record, Your Honor, the witness is going over the tabulation submitted and marked by Attorney Wamil, and it is Exhibit P-I-29.

The Presiding Officer. Noted and made part of the records.

Ms. Kapunan. Do you confirm, Madam Witness, that *ito ang tabulation na sinubmit (submit) ni Attorney Wamil sa COA-ICFAO office na minana mo sa kanya?*

Ms. Del Campo. Yes *po*. *Ito po iyong tabulation na kasama po doon sa mga documents na na-forward sa akin*.

Ms. Kapunan. Okay. After you received these documents from Attorney Wamil, through the office of the COA-ICFAO, what happened next?

Ms. Del Campo. After *po ma-issue iyong Notice of Suspension sa OVP, nag-submit po sila ng Response noong March 13, 2024 po*.

Ms. Kapunan. *Itong Response na sinasabi mo, mayroon ka bang kopya?* And if shown to you—if shown to you *itong Response ng Office of the Vice President*, will you be able to identify the same?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Your Honor, for easy reference of the Presiding Officer and this Impeachment Court, may we ask permission to flash it on the screen, Your Honor?

The Presiding Officer. Counsel may do so.

You are referring to Exhibit P-I-13-b?

Ms. Kapunan. Yes, Your Honor.

The Presiding Officer. And Respondents' I-120-OVP?

Ms. Kapunan. This is a stipulated document, Your Honor.

The Presiding Officer. You may proceed, Counsel.

Ms. Kapunan. So, the Counsel for the Defense is now looking at it.

Madam Witness, having gone over this document, Madam Witness, *ito ba iyong sinasabi mong Letter Response ng Office of the Vice President?*

Ms. Del Campo. Yes *po*. *Ito po iyong same copy ng Response ng OVP sa Notice of Suspension*.

Ms. Kapunan. I will now show you the second page of this letter, Madam Witness, being flashed on the screen. Please look at the second page, in particular, we have what appears to be certain signatures, *mga signature na nandiyan sa second page ng response ng Office of the Vice President*. If shown to you, Madam Witness, would you be able to identify these signatures?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. There is a signature appearing on top of the name Attorney Zuleika—Attorney Lopez. There is a signature appearing above the name Atty. Zuleika Lopez. Would you be able to identify that signature?

Ms. Del Campo. Yes po.

Ms. Kapunan. Bakit, Madam Witness?

Ms. Del Campo. Kasama po kasi doon sa isinubmit (submit) sa liquidation documents na naibigay sa akin at na-turn over sa akin iyong list ng signatories po ng OVP.

Ms. Kapunan. At kasama ba doon ang signature ni Attorney Zuleika Lopez?

Ms. Del Campo. Yes po.

Ms. Kapunan. Okay. There is another signature here appearing atop the name Lemuel Ortonio. Please go over this signature and tell us if you are familiar. *Nakikilala mo ba itong signature ng isang Ortonio sa dokumentong ito?*

Ms. Del Campo. Yes po.

Ms. Kapunan. Why, Madam Witness?

Ms. Del Campo. Kasama din po ito doon sa list ng specimen signature na na-submit sa amin doon sa liquidation documents nila.

Ms. Kapunan. And pag-alam mo, sino ba itong Atty. Zuleika Lopez?

Ms. Del Campo. Based po dito sa dokumento na ito, siya po ang chief of staff ng OVP—undersecretary po at chief of staff.

Ms. Kapunan. Ito naman Mr. Lemuel Ortonio, sino naman itong Lemuel Ortonio na ito?

Ms. Del Campo. Based po sa document, siya po ang assistant secretary and assistant chief of staff.

Ms. Kapunan. Sa Letter Response na ito na na-identify mo, may nakalagay—mayroon bang naka-attach dito sa letter response?

Ms. Del Campo. Yes po, nag-attach po sila ng list of 105 activities ng Office of the Vice President for the period December 13 to 31, 2022.

Ms. Kapunan. First quarter ng—

Ms. Del Campo. Fourth quarter po, fourth quarter ng 2022, specifically December 13 to 31, 2022.

Ms. Kapunan. If we show you this list of activities na in-attach sa Letter Response, will you be able to identify this list?

Ms. Del Campo. Yes po.

Ms. Kapunan. We are flashing on the screen, Your Honor, a list of activities, which is an attachment to the Letter Response of the OVP, Exhibit P-I-13-b, whereat iyong listahan allegedly ng mga activities ng OVP ay naka-enumerate.

Tell us, Madam Witness—Likewise, flashed on the screen, tell us Madam Witness, ano ang significance nitong mga list ng activities na isinubmit ng Office of the Vice President sa kaniyang Letter Response? Anong ibig sabihin noon, list of activities?

Ms. Del Campo. Ito po ay naging attachment nila as documents evidencing success of information gathering and/or surveillance activities po na required po kapag nagkakaroon ng payment of rewards.

Ms. Kapunan. Anong period covered nitong list of activities?

Ms. Del Campo. December 13 to 31, 2022 po.

Ms. Kapunan. And what—Ang observation ay itong activities na nakalagay diyan ay prior to the receipt of the Office of the Vice President of its confidential fund. Ito ba ay kino-confirm mo?

Ms. Del Campo. Yes po. Kasi iyong cash advance po for 2022 po is for the period December 21 to 31, 2022.

Ms. Kapunan. *At kailan na tinanggap ang cash advance?*

Ms. Del Campo. December 21 po ang start.

Ms. Kapunan. *Hindi ba ang ibig sabihin ng liquidation report ay sinasabi mo kung ano iyong mga pinaggamitan mo ng cash advance. Tama ba iyon?*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. Okay. And, sa palagay mo, compliant ba ito? Kasi post-audit compliance ito.

Ms. Del Campo. Base po sa document na ito, hindi po napakita dito na iyong proof of success of the information gathering at may mga activities din po dito na, from December 13, 15, 17, 18, na hindi po sakop doon sa period of utilization noong cash advance, which is for December 21 to 31, 2022.

Ms. Kapunan. So, you mentioned a joint circular. Mayroon ka bang—Ano—Anong pinagbasehan mo kung bakit violation ito?

Ms. Del Campo. Under po kasi sa Joint Circular 2015-01, kapag po ginamit ang confidential fund sa payment of rewards, subject po ito sa tatlong conditions.

Ms. Kapunan. *Ano iyong mga kondisyon na iyon?*

Ms. Del Campo. First po, it should be approved by the head of agency. Pangalawa po, it should be supported with documents evidencing success of the information gathering and/or surveillance activities on account of the information given by the informer. And iyong last po is, it should be directly related sa confidential activities ng agency po.

Ms. Kapunan. Okay. So, ano diyan sa requirements ang sinasabi mong hindi sinunod ng Office of the Vice President?

Ms. Del Campo. Ito po kasing listahan na ito, isinabmit (submit) nila as proof of success of information-gathering to support the payment of rewards. Pero based po sa documents na ito, hindi po namin nakita iyong particular accomplishment.

Ms. Kapunan. Okay. Nakalagay sa dokumento, examples ng activities ng Office of the Vice President for the confidential funds. Pakibasa nga, for the record, kasi tama ba iyong basa namin may tree planting, gift giving? Please read for the record, Madam Witness. Ano iyong sinasabing pinaggamitan ng confidential funds?

Ms. Del Campo. Dito po sa December 13, 2022, Department of Education 2022 Partners Appreciation Night in Mandaluyong City, Metro Manila. December 15, Knight—

Ms. Kapunan. Sandali, Appreciation Night?

Ms. Del Campo. *Opo.*

Ms. Kapunan. Sa pagkakaintindi mo, confidential activity ba iyon, o nasa listahan ba iyan ...

Ms. Ferrer. Your Honor—

Ms. Kapunan. ... ng confidential activities based sa joint circular?

Ms. Del Campo. Based po doon sa enumeration kung saan gagamitin ang confidential fund, hindi po ito nakasama doon.

Ms. Kapunan. Basahin mo pa iyong iba. So, hindi. Ano pa iyong iba?

Ms. Del Campo. December 15, 2022, Knights of Rizal Supreme Council, 60th year of the Institute in Baguio City, Youth Campaign on Patriotism. At mayroon din po noong—

Ms. Kapunan. Compliant ba ito sa listahan?

Ms. Del Campo. Based po sa joint circular, hindi po ito nakasama doon sa mga activities po under 4.8, kung saan puwedeng gamitin ang confidential fund.

Ms. Kapunan. *Basahin mo nga lahat ng activities na iyan, for the Record, at sabihin mo kung compliant ito, kung ito bang mga activities ay pinapayagan bilang liquidation ng confidential funds.*

Ms. Del Campo. *Mayroon po dito December 17, 2022, Christmas activity in Happy Land, Tondo, Manila; Christmas activity and exploration meeting of Extension Office, Barangay 101 in Tondo, Manila; consultation with Barangay Chairmen ng Maynila in Manila; Pasasalamat and update meeting, TODA, in Barangay Batasan Hills, Quezon City. May mga activity po dito na pasasalamat, coordination meeting, may mga tree planting po, distribution of wheelchairs, gift-giving, medical mission, at iba pong activities ng mga satellite offices po ng Office of the Vice President.*

Ms. Kapunan. *Sa joint circular na minensyon (mention) mo, can you remind us, ano ba talaga ang definition ng confidential funds?*

Ms. Del Campo. *Ang confidential fund po, ito po iyong lumpsum amount na nasa General Appropriations Act, na gagamitin po for confidential activities po ng isang ahensiya.*

Ms. Kapunan. *At itong binasa mo, tree planting, Christmas— napakadaming Christmas party, napakadaming award ceremony, iyan ba ay pinapayagan sa sinabi mong definition ng confidential funds?*

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. *Hindi po.*

The Presiding Officer. With the indulgence of Counsel.

Ms. Kapunan. Your Honor, please—

The Presiding Officer. With the indulgence of Counsel.

Ms. Xylene, *maliban sa hindi pinapayagan o pasok sa puwedeng paggastusan ng confidential fund iyong mga binasa po ninyo, iyong gastos ay ginawa rin bago na-encash iyong tseke?*

Ms. Del Campo. *Kung based po sa document na ito, mayroon po kasing activities dito na from December 13 to 18 na hindi po sakop doon sa period of utilization, based sa accomplishment report.*

The Presiding Officer. *Opo, so labas doon? Labas doon?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *So, hindi posibleng gamitin iyong perang na-release nang 21 para i-reimburse iyon, kung tama man iyong pinaggastusan?*

Ms. Del Campo. *Yes po. Kasi under the Joint Circular po, mayroon pong portion doon na hindi po puwedeng gamitin for reimbursement iyong pondo ng confidential.*

The Presiding Officer. *So, prospectively lang. So, iyong mga activities na puwede lang ay 21 to 31.*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. You may proceed, Counsel.

Ms. Kapunan. *Dahil dito sa sinabi mong violation, wala sa period 'no, as observed by the Honorable Presiding Officer, at dahil wala naman sa listahan sa Joint Circular kung saan puwedeng gamitin ang confidential funds, ano ang ginawa mo after that, if any?*

Ms. Del Campo. *After po evaluating the response ng OVP at saka po iyong mga attachments nito, ako po ay nag-draft ng Notice of Disallowance at isinabmit (submit) ko po ito sa aking Division Chief for her review.*

Ms. Kapunan. *If I will show you—'pag ipinakita sa iyo ang isang Notice of Disallowance—for purposes of the record, Your Honor, this has been pre-marked as Exhibit P-I-13-c—would you be able to identify it?*

Ms. Del Campo. *Opo.*

Ms. Kapunan. Showing to you—Attorney Dela Cruz, will show it to you. Please go over this document and tell us if—the relationship of this document to the notice of disallowance you have mentioned. And, again, we are seeking permission to flash it for easy reference on screen.

Ms. Del Campo. *Opo, iyon po iyong same copy ng Notice of Disallowance na in-issue namin sa Office of the Vice President.*

Ms. Kapunan. Please look—Counsel. Please look at this Notice of Disallowance, there is a signature there on top of the name Nilda B. Plaras. *Kanino pong signature ito?*

Ms. Del Campo. *Si Assistant Commissioner Nilda Plaras po ang Officer-in-Charge ng ICFAO noong ma-issue po ang dokumento na ito.*

Ms. Kapunan. *Anong ibig sabihin 'pag pinirmahan ng isang assistant commissioner ang isang Notice of Disallowance na idrinap (draft) mo?*

Ms. Del Campo. *Ito po is for release na po, na-approve po niya kung—ang laman nito, at for release na po ito sa agency.*

Ms. Kapunan. For release ng agency. Okay. Tell us, Madam Witness, *itong Notice of Disallowance ng COA-ICFAO, iyong recommendation mo, at iyong inaprub (approve) ng Assistant Commissioner for release, magkano—magkano ang disallowed ng COA-ICFAO?*

Ms. Del Campo. *Ang disallowance po is 73,287,000.*

Ms. Kapunan. *Ano naman ang basis ng disallowance na ito?*

Ms. Del Campo. *Ang disallowance po na ito, binubuo po ito ng, first, iyong payment of rewards in the total amount of 69,787,000.*

Ms. Kapunan. Before you proceed, Your Honors, please, this is being flashed on the screen. This is the first page of Exhibit P-I-13-c, which is the Notice of Disallowance identified by this witness.

First page *diyan*, Madam Witness, *ano ang breakdown o basehan ng iyong Notice of Disallowance?*

Ms. Del Campo. *Iyong 73,287,000, ang bumubuo po dito is iyong payment for rewards amounting to P69,787,000 plus iyong P3.5 million for payments for tables and chairs, desktop computers, and printers po.*

Ms. Kapunan. *Dalawa ang amount na naka-indicate diyan. Bakit dalawa ang amount? Paki-explain.*

Ms. Del Campo. *Ito po ba iyong sa number one na iyong P69,587,000 at iyong sa ...*

Ms. Kapunan. In No. 1, in item No.1, if you can check your document on the screen, item No. 1 *sa Notice of Disallowance, dalawa ang amount na naka-state, isa P69,587,000 at iyong isa ay P69,787,000. Ito ba ay typo, discrepancy? Ano ang—bakit may hindi pareho itong amount?*

Ms. Del Campo. *Ito po ay isang typographical error po. Ang tamang amount po is P69,787,000.*

Ms. Kapunan. Okay. Ngayon naman Madam Witness, let us go to Page 2, Item No. 2. *Ano naman—Pakibasa ang sinabi dito sa Page 2, item No. 2.*

Ms. Del Campo. The Notice of Disallowance *po* is issued *kasi iyong pangalawang reason po* is, "charging payment for tables and chairs, desktop computers, and printers in the total amount of P3.5 million to confidential fund without specifying that they were intended for the confidential operations/activities undertaken by the OVP, non-compliant with the requirement of Item 4.8.4 of the Joint Circular."

Ms. Kapunan. *Ano iyong Item 4.8 ng circular na sinasabi mo?*

Ms. Del Campo. *Puwede po ba akong mag-refer para po sa Joint Circular? Your Honor, puwede po ba—*

Ms. Kapunan. With the permission—

The Presiding Officer. Witness may refer to the document.

Ms. Del Campo. Thank you *po*.

Base *po sa* Item 4.8.4 ng Joint Circular, “purchase or rental of supplies, materials and equipment for confidential operations that cannot be done through regular procedures without compromising the information-gathering activity concerned.”

Ms. Kapunan. Okay. *Bakit ito naging basehan ng disallowance noong tables and chairs na iyan? Hindi ba confidential iyon? Kung saan binili iyong table and chair na iyan? Hindi ba confidential iyon, Madam Witness?*

Ms. Del Campo. *Hindi po kasi nila ini-specify na the payments for tables—iyong tables and chairs, and desktop computers were used for confidential operations po. Wala po silang na-submit na any explanation doon sa response po nila.*

Ms. Kapunan. *Kailangan ba mag-submit ng—Ano ang mga kailangan i-submit na dokumento—by way of—para i-explain kung saan ginamit itong tables and chairs, laptop, at saka—Anong hinahanap ninyo sa post-audit?*

Ms. Del Campo. *Dapat po mapatunayan nila na ito ay binili para po sa confidential operations ng ahensiya.*

Ms. Kapunan. *At anong kailangan na dokumento?*

Ms. Del Campo. And since this pertains *po* as purchases, *dapat po* supported *ito* ng either sales invoice or official receipts *po*.

Ms. Kapunan. Okay. *Sa pag-evaluate mo nitong dokumentong sinabmit (submit) ng Office of the Vice—mayroon ba iyong mga official receipts, sales invoice na isinabmit?*

Ms. Del Campo. *Wala po.*

Ms. Kapunan. *Isa, dalawa, tatlo, walang sinabmi (submit)t, Madam Witness?*

Ms. Del Campo. *Wala pong mga resibo po.*

Ms. Kapunan. Okay. Now, based *sa* iyong audit, *sino-sino ang* liable persons *dito sa* connection, in connection—in connection with this Notice of Disallowance *na binasa mo? Sino-sino ang mga persons na* responsible or accountable *diyan sa ipinakita mo?*

Ms. Del Campo. *Ang mga persons po na liable or responsible is, first po, the head of agency, Vice President Sara Duterte, the Special Disbursing Officer, si Ms. Gina Acosta, at ang Chief Accountant po na si Ms. Julietta Villadelrey.*

Ms. Kapunan. *Sige. Sa document na iyan, puwede bang ipakita mo iyong mga pangalan na sinabi mo?*

Ms. Del Campo. *Nasa Page 2 po.*

Ms. Kapunan. Showing to you Page 2, Madam Witness, and being flashed on the screen. Please tell us if these are the very same persons *na sinabi mo na* accountable.

Ms. Del Campo. *Yes po.*

Ms. Kapunan. *Bakit sila accountable?*

Ms. Del Campo. *Unang-una po iyong si Vice President Sara Duterte po, siya po ang nag-approve ng transaction and including the utilization of the cash advance.*

Ms. Kapunan. *Saan nakalagay diyan na siya ang nag-approve?*

Ms. Del Campo. *Iyon pong sa Accomplishment Report. And then, kay Ms. Gina Acosta naman po dahil siya ang Special Disbursing Officer, and she disbursed po the cash advance.*

Ms. Kapunan. *Ito namang Villadelrey, bakit sinasabi mo na accountable officer siya?*

Ms. Del Campo. *Nag-certify po siya doon sa box C ng Liquidation Report na ang supporting documents are complete and proper.*

Ms. Kapunan. *Hindi ba nila ginawa ito, iyong mga sinasabi mo na kailangan sa Joint Circular?*

Ms. Del Campo. *Yes po.*

Ms. Kapunan. *Yes?*

Ms. Del Campo. *Eh kasi po iyong participation nila sa transaction, kaya po sila nasama sa persons na liable po sa transaction na ito dahil, first, si VP Sara bilang siya ang head of agency at siya po ang nag-approve ng transaction and utilization ng cash advance. Pangalawa po, ang naging participation po ni Ms. Gina Acosta is siya po ang special disbursing officer at siya po iyong nag-disburse ng cash advance. At kay Ms. Julieta Villadelrey naman po, sinertifay (certify) niya na complete and proper iyong supporting documents pero hindi po complete and proper iyong na-submit po sa amin.*

Ms. Kapunan. *Okay. Madam witness, nag-issue ka—nag-issue ang COA ICFAO ng Notice of Disallowance. What happened next, if any, kung maalala mo?*

Ms. Del Campo. *Noon pong February 5, 2025, nag-appeal po ang Office of the Vice President, nag-file po sila ng Petition for Review sa Commission Proper.*

Ms. Kapunan. *And do you know what happened to this Petition for Review?*

Ms. Del Campo. *Noong April 10, 2026 po, naglabas ng decision ang Commission Proper at na-furnish-an po ang aming office and in-affirm po nila iyong Notice of Disallowance in the total amount of P73,287,000.*

Ms. Kapunan. *So, iyong Petition for Review ay disallowed pa rin?*

Ms. Del Campo. *Noon pong lumabas iyong desisyon ng Commission Proper, in-affirm po nila iyong disallowance.*

Ms. Kapunan. *Magkano iyong disallowed ng Commission Proper?*

Ms. Del Campo. *Same po sa nasa Notice of Disallowance namin, ± 73,287,000 po.*

Ms. Kapunan. *At ano naman ang ibig sabihin ng “disallowed”?*

Ms. Del Campo. *Ang notice of—ang disallowed po is sa level ni ICFAO po kasi ‘pag nag-issue kami ng Notice of Disallowance, mayroon na po silang—we demand them to—ibalik po iyong pondo. Pero mayroon pong remedy, which is iyong ginawa nila, nag-file sila ng Petition for Review po sa Commission Proper.*

Ms. Kapunan. *At ano naman ang nangyari sa Petition for Review na iyan?*

Ms. Del Campo. *Iyon nga po, nagkaroon ng COA decision na in-affirm po nila iyong Notice of Disallowance.*

Ms. Kapunan. *Pagkatapos na in-affirm iyong Notice of Disallowance ng Commission, ano ang ginawa, if at all?*

Ms. Del Campo. *Noong May po, May 2026, mayroon po silang ifinayl (file) na Motion for Reconsideration.*

Ms. Kapunan. *So, nag-file ng Motion for Reconsideration ang Office of the Vice President. Anong nangyari sa Motion for Reconsideration na ifinayl (file) tungkol dito sa decision na ibalik ang P73 million na iyan? Ano ang status?*

Ms. Del Campo. *Wala pa pong naging decision ang Commission Proper po. Pending resolution po.*

Ms. Kapunan. *Punta naman tayo sa first quarter and second quarter of 2023 which covers the Office of the Vice President’s liquidation of confidential funds. What is your participation? Ano naman ang participation mo dito sa pag-evaluate ng liquidation expenses or documents na isinabmit (submit) ng Office of the Vice President?*

Ms. Del Campo. For *anong* period *po*?

Ms. Kapunan. For the first and second quarters of 2023.

Ms. Del Campo. *Ako po ang nag-evaluate ng response ng OVP sa Audit Observation Memorandum po na na-issue sa kanila* for that period.

Ms. Kapunan. *Iyong dalawang quarters ay nag-issue ng Audit Observation Memorandum. Sino ang nag-issue?*

Ms. Del Campo. *Iyon po, si Mr. Wamil po. Na-issue po iyong AOM na iyon noong time ni Mr. Wamil.*

Ms. Kapunan. And if shown to you this AOM, Audit Observation Memorandum, dated February 2024—for the record, this is Exhibit P-I-13-e—being shown to the witness and being flashed on the screen for easy reference. Will you be able, Madam Witness, to identify the same?

For the record, this is a stipulated document.

Ms. Del Campo. Yes *po*.

Ms. Kapunan. *Pagkatapos ng issuance nitong Audit Observation Memorandum, mayroon bang ginawa ang Office of the Vice President?*

Ms. Del Campo. *Nag-submit po sila ng response noong April 19, 2024.*

Ms. Kapunan. *Para saan itong response?*

Ms. Del Campo. *Response po nila sa AOM na na-issue po sa kanila* for the first and second quarters of 2023.

Ms. Kapunan. And just to remind us, *anong* period covered *ng* first quarter?

Ms. Del Campo. It's for February 6 to March 29, 2023, *at iyong* second quarter *po*, April 25 to June 30, 2023.

Ms. Kapunan. How many, Madam Witness, *kung maalala mo, ilang*—wait, I withdraw the question.

Ito ba sa response na isinabmit (submit) ng Office of the Vice President, ano ang mga naka-attach dito sa response na ito?

Ms. Del Campo. *Sa response po nila, nag-attach po sila ng acknowledgment receipts, certification ni Colonel Lachica, at mga protective intelligence operations reports po.*

Ms. Kapunan. Before we go to those documents *na sinasabi mo*, sa response being shown on the screen, there is on the second page—Counsel, will you show the second page—there is a signature appearing on the second page of the response. Whose signature is that appearing above the name Attorney Lopez?

Ms. Del Campo. *Opo.*

Ms. Kapunan. *Kaninong signature iyan, if you know?*

Ms. Del Campo. *Kay Atty. Zuleika Lopez po.*

Ms. Kapunan. *At dito naman, above the name Mr. Ortonio?*

Ms. Del Campo. *Kay Mr. Lemuel Ortonio po.*

Ms. Kapunan. And you are familiar with these signatures for the same reasons you stated earlier?

Ms. Del Campo. Yes *po*, *tama po*.

Ms. Kapunan. *Sa response na isinabmit (submit) ng Office of the Vice President, sinabi mo kanina, mayroong mga acknowledgment receipts. If shown to you a summary of these acknowledgment receipts—how many acknowledgment receipts were attached to the response for the first quarter of 2023?*

Ms. Del Campo. *Iyong sa first quarter po ng 2023 is 519.*

Ms. Kapunan. Five hundred nineteen acknowledgment receipts. *At sinabi mo kanina, this covers the period February 6 to March 29, 2023, tama?*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *Sa second quarter of 2023, ilan naman ang acknowledgment receipts na isinabmit ng Office of the Vice President?*

Ms. Del Campo. Five hundred thirty *po*.

Ms. Kapunan. So, *pag total number ng acknowledgment receipts for the first quarter and second quarter is how much?*

Ms. Del Campo. One thousand forty-nine *po*.

Ms. Kapunan. *At, Madam Witness, if shown to you these acknowledgment receipts or a summary—if shown to you certified true copies of these acknowledgment receipts, would you be able to identify the same?*

Ms. Del Campo. Yes *po*.

Ms. Kapunan. By agreement with the Honorable Presiding Officer, Your Honor, in lieu of this witness glossing over or looking over the documents, but they are in front of her, Your Honor, we manifest that she has prepared a tabulation.

The Presiding Officer. Yes, as agreed to also by Counsel for the Respondent, the witness need not peruse individually and flip over, as the word used by Counsel, these ARs and may refer to her tabulation and/or summary that she prepared with respect to Ma'am Xylene, the first and second quarter of 2022 for the ARs, acknowledgment receipts for the Office of the Vice President. You may refer to your table and/or summary, Ma'am, if you have one.

Ms. Kapunan. Your Honor, please, may we also make the manifestation, Your Honor, for future witnesses, Your Honor, this should not—this should not dispense with our future witnesses being able to identify—to use and to identify certain acknowledgment receipts, Your Honor, which are part of the summary or tabulation.

The Presiding Officer. Without prejudice to the reservation of Counsel, the Court will allow it.

Ms. Xylene or Atty. Lorna, can you kindly give us a copy, because that is not yet a marked document, right?

Ms. Kapunan. Your Honor, for the record, we are handing over—

The Presiding Officer. That is not a pre-marked document; rather, the table.

Ms. Kapunan. These summaries, Your Honor, *hindi po ito* pre-marked, but we are now giving a copy to the Honorable Presiding Officer and to Counsel for the Respondent.

The Presiding Officer. Yes, kindly do so.

The Clerk of Court is instructed to reproduce the copy to be able to give each Senator-Judge with a copy of the table or summary.

Ms. Kapunan. For the record, Your Honor, while our witness is perusing this document, we have given a copy of what she is going over both to the Presiding Officer, through the Clerk of Court, Your Honor, and to the Respondent's Counsel.

And, again, for the record, this is for the first quarter, February 6-March 29, 2023, consisting of 519 documents in that summary, and second quarter of the Office of the Vice President, covering the period April 25 to June 30, 2023, consisting of 1,049 documents, Your Honor, total for both quarters.

And, Your Honor, we will be requesting, through the Clerk of Court, Your Honor, at some time, that these be marked as Exhibit—the tabulation being identified by the witness be identified for the first quarter as P-I-30-Q-1 and series, and tabulation for the second quarter be marked as Exhibit P-I-31-Q and series, Your Honor.



The Presiding Officer. The aforementioned tabulations and their summaries are hereby ordered to be so marked by the Clerk of Court at the appropriate time.

Ms. Kapunan. We have selected, for the first and second quarter, Your Honor, we have selected—for better appreciation of the Honorable Presiding Judge and our Senator-Judges, Your Honor—we have selected certain acknowledgment receipts which we request be shown to the witness when she is done.

The Presiding Officer. Assisting Counsel may approach.

Ms. Kapunan. Madam Witness, just look at the summaries, please. You confirm that these summaries marked in evidence now are yours?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Tell us, tell us, walk us through. *Anong proseso ang ginawa mo sa paggawa mo ng mga summary na ito?*

Ms. Del Campo. During the evaluation *po*, I tabulated *po* *iyong* acknowledgment receipt *doon po* based *sa* date *kung kailan sila na-execute*, the expense, and the amount *po*. *Kaya ang nakalagay po sa tabulation ko* is the date, the amount, and the expense *po*.

Ms. Kapunan. *Iyong pangalan?*

Ms. Del Campo. *Hindi na po namin na— hindi ko na po na-tabulate iyong sa names.*

Ms. Kapunan. Okay. So, *nakalagay diyan iyong amount, iyong date ...*

Ms. Del Campo. And *iyong* expense.

Ms. Kapunan. ... *at iyong* expense. But if I show to you certain acknowledgment receipts which were part of the documents that you said were turned over to the COA-ICFAO office, would you be able to—*kapag ipinakita sa iyo* certain acknowledgment receipts *na parte ... na nasa* part ng tabulation or summary *mo*, would you be able to identify the same?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. I'll show you now. And with the kind permission of this Honorable Court, we have chosen certain acknowledgment receipts to be flashed on the screen, Your Honor, and being shown to the witness, marked as Exhibit P-I-8-1418 is a certain— is a certain Pia Piatos-Lim. Could you read the date, Madam Witness?

Ms. Del Campo. *Dito po* is May 17, 2023.

Ms. Kapunan. Please be louder. Speak to the mic.

Ms. Del Campo. May 17, 2023 *na-receive po ni* Pia Piatos-Lim.

Ms. Kapunan. *Para saan ito allegedly?*

Ms. Del Campo. For the purchase of information *po*.

Ms. Kapunan. Okay. And *may* signature *diyan sa ilalim*. Whose signature is this at the bottom?

Ms. Del Campo. *Ito po* is signature *po ng* admin staff *namin sa* ICFAO.

Ms. Kapunan. Who is your admin staff in ICFAO?

Ms. Del Campo. *Si Mr. Davin E. Baccay po*.

Ms. Kapunan. Davin Baccay?

Ms. Del Campo. Davin E. Baccay.

Ms. Kapunan. Yes, and that is his signature, administrative. *Ano ang* significance *nitong* sinayn (sign) *ng* administrative staff *ninyo ang* acknowledgment receipts?

Ms. Del Campo. *Pinapatunayan po nitong* certification *na ito na ito po* *iyong* copy *na* sinabmit (submit) *sa* amin *ng* OVP *na* nasa file *namin*.

Ms. Kapunan. *Pinapatunayan na ang binabasa mo ay kasama sa ibinigay ng Respondent?*

Ms. Del Campo. *Yes po. Kasama po ito sa binigay sa amin na acknowledgment receipt in response po sa AOM.*

Ms. Kapunan. *So, iyong summary ng acknowledgment receipts for the first quarter and second quarter ng Office of the Vice President consisting of 1,049 separate acknowledgment receipts, sabihin mo nga sa amin kung mayroong similar signature ang all other acknowledgment receipts ni Mr. Davin Baccay?*

Ms. Del Campo. *Yes po. Doon po sa mga acknowledgment receipts na ito is lahat po sinertifay (certify) ni Mr. Baccay na ito po ay mga kopya ng acknowledgment receipts na isinabmit (submit) po sa amin ng OVP.*

Ms. Kapunan. *Punta naman tayo sa P-I-8-1483. Pangalan ng—* Please read for the record.

Ms. Del Campo. Acknowledgment receipt, "This is to acknowledge receipt of the amount of ± 150,000 for the purchase of information; received by Ralph Josh Bacon on June 20, 2023."

Ms. Kapunan. Bacon. Okay. *Alas dose na, gutom na tayo.*

*Iyong susunod na pangalan, mukhang—*P-I-8-928. *Pakibasa* for the record.

Ms. Del Campo. Acknowledgment receipt, "This is to acknowledge receipt of the amount of ± 50,000 for the purchase of information, received by Anne Ongpauco; date, March 20, 2023."

Ms. Kapunan. Okay. Next, P-I-8-1015. *Pangalan ni Heart, Heart Santiago. Pakibasa. Bumili siya ng supplies.*

Ms. Del Campo. "This is to acknowledge receipt of the amount of ± 250,000 for the purchase or rental of supplies, materials, and equipment for confidential operations (Payment for the purchase of supplies), received by Heart Santiago; date, Feb. 27, 2023."

Ms. Kapunan. *Kanina, Madam Witness, mayroong "Ongpauco" at saka mayroong "Heart." Tinanong mo ba kung sino ito at kung related sila sa Presiding Officer natin?*

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. *Hindi naman. Bakit hindi? Bakit hindi ka nag-verify ng mga pangalan? May pagkain na bacon, may parang kamag-anak ni Heart. Why did you not verify the names in these 1,049 acknowledgment receipts?*

Ms. Del Campo. *Sa ICFAO po kasi ang ginagawa namin is compliance audit po.*

Ms. Kapunan. *Anong ibig sabihin noon?*

Ms. Del Campo. *Itsine-check po namin kung compliant ba sa joint circular at kumpleto at proper ba iyong mga liquidation documents po na sina-submit sa amin in relation po sa provisions ng joint circular.*

Ms. Kapunan. Okay. *Sinabi mo kung proper ba. Ito bang payment of purchase of supplies, proper ba iyan sa paggamit ng confidential funds?*

Ms. Del Campo. *Iyong payment for supplies po, kasama po siya doon sa enumeration kapag payment for supplies na ginamit po sa confidential operations.*

Ms. Kapunan. *At sinabi mo earlier, dapat iyong mga sina-submit may kasamang sales invoice at mga kasamang purchase documents. Mayroon bang kasama dito, sinabmit (submit) ni Ms. Heart?*

Ms. Del Campo. *Wala po.*

Ms. Kapunan. *Wala. P-I-8-1807, Feonna Villegas. Pakibasa.*

Ms. Del Campo. Acknowledgment receipt, "This is to acknowledge receipt of the amount of ± 500,000 for the purchase or rental of supplies, materials, and equipment for confidential operations (Purchase of provision of medical and food aid)."

Ms. Kapunan. Okay. *Nakalagay* "Purchase of medical and food aid." *Ito ba ay sang-ayon sa pinapayagan na paggamitan ng confidential funds?*

Ms. Del Campo. Based *po dito*, *nakalagay po na* it is for the purchase of supplies *na naka-open and close po*, "Provision of medical and food aid."

Ms. Kapunan. P-I-8-1466, *kamag-anak yata ito ni* Senator Bong Revilla—Beth Revilla, ± 50,000, purchase of information. *Ang purchase of information ba ay allowed? Allowable expense?*

Ms. Del Campo. Yes *po*, under 4.8.1 *po*, *kasama po ang* purchase of information.

Ms. Kapunan. *Eh, kung kasama, bakit mo dinis-allow itong* purchase of information?

Ms. Del Campo. *Hindi po ito kasama doon sa na-disallow po.*

Ms. Kapunan. *Ito?*

Ms. Del Campo. *Hindi po?*

Ms. Kapunan. Okay. *Balik naman tayo sa* P-I-8-1220. *Kamag-anak naman ito ni* Senator Risa Hontiveros. "Clarisse Hontiveros." Please read the amount.

Ms. Del Campo. "This is to acknowledge receipt of the amount of ± 500,000 for the purchase or rental of supplies, materials, and equipment for confidential operations (Purchase of provision of medical and food aid)."

Ms. Kapunan. *At, again, disallowed ito?*

Ms. Del Campo. *Kasama po ito doon sa na-disallow po kasi* based on these acknowledgment receipts, we cannot ascertain—*hindi ko po ma-ascertain* if this is really *nabigay* for purchase of medical and food aid, *kaya humingi pa po ako ng* additional documents.

Ms. Kapunan. *Nabigyan rin itong* Jose Diokno Jr.? *Kamag-anak ba ito ni* Public Prosecutor, Madam Witness? *Binerify (verify) mo ba?*

Can you look at P-I-8-1482? *Nagbigay ng* information *itong* Diokno.

Kapangalan, Jose Diokno Jr. Junior, baka anak ni congressman.

Hindi mo tinanong kanina noong dumaan ka diyan?

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. *Ah, hindi.* Okay.

Ito naman, I-8—P-I-8-994. Kamag-anak naman ni Senator Lapid. *Diane Maple Lapid na tumanggap ng* P150,000 *na bumili daw ng* supplies. *Pakibasa* for the record.

Ms. Del Campo. "This is to acknowledge receipt of the amount of P150,000 for the purchase or rental of supplies, materials and equipment for confidential operations," open—

Ms. Kapunan. *Bakit—sorry.* Go ahead.

Ms. Del Campo. Open and close parenthesis—"Payment for the Purchase of Supplies), received by Diane Maple Lapid on February 17, 2023."

Ms. Kapunan. *Bakit naman naka-disallow itong* expense *na ito?*

Ms. Del Campo. *Gaya po iyon sa* provision and medical and food aid, based on these acknowledgment receipts *po, hindi po ma-ascertain kung* this is really given for the purchase of supplies, *kaya nanghingi po ako ng* additional documents *po.*

Ms. Kapunan. *Mayroon na naman*, not once, but for the second time, Lapid family, John A. Lapid Jr., *tumanggap ng* P350,000.

Can you read for the record? P-I-8-1735.

Ms. Del Campo. "Acknowledgment Receipt. This is to acknowledge receipt of the amount of P350,000 for the purchase or rental of supplies, materials and equipment for confidential operations (Purchase of Provision of Medical and Food Aid), received by John A. Lapid Jr.; date, May 3, 2023."

Ms. Kapunan. Madam Witness, apart from these selected acknowledgment receipts, the total for the first quarter and the second quarter of the Office of the Vice President are similar acknowledgment receipts for purchase of medical and food aid, *pambili daw ng supplies, pambili ng iba-iba pa; ano ang masasabi mo sa mga expenses na ito?*

Ms. Del Campo. *Noong in-evaluate ko po, kasama po siya doon sa naging findings ko, at hinihingan ko po ng additional documentation to ascertain po na these are paid na pinambili po ng supplies, medical, and food aid.*

Ms. Kapunan. Okay. *Noong sinabi mong humingi ka ng additional information or documents, nag-submit ba ang Office of the Vice President para patunayan talaga na itong medical, grocery, et cetera, tables, eh talagang ginamit sa confidential funds?*

Ms. Del Campo. *Kasama po ito doon sa Notice of Disallowance, and iyong Notice of Disallowance po is within the prescribed period pa po sila para mag-comply.*

Ms. Kapunan. *Nag-comply ba sila?*

Ms. Del Campo. *Wala pa po silang naging aksiyon after ma-receive nila ito.*

Ms. Kapunan. So, despite na binigyan Ninyo—ng COA-ICFAO—ng opportunity para mag-submit ng additional documents para mapatunayan nila or mag-explain man lang bakit nandiyan ang mga pangalan na iyan at bakit walang mga resibo na in-attach para pang-liquidate, nag-submit ba ang Office of the Vice President ng additional documents after this Notice of Disallowance?

Ms. Del Campo. *Dahil nga po nabanggit ko na naging Notice of Disallowance po ito, ang remedy po nila is to appeal po sa Commission Proper and nandoon pa po sila sa period with—to appeal po sa Commission Proper.*

Ms. Kapunan. Okay. Ngayon, what other ano, mayroon pa bang ibang dokumento na sinabmit (submit) ang Office of the Vice President na sinama sa response nila?

Ms. Del Campo. *May sinab—to support po the payment of rewards, nag-submit po sila ng certification ni Colonel Raymund Dante P. Lachica, together with the protective intelligence operations report.*

Ms. Kapunan. If shown to you, will you be able—kung ipakita sa iyo itong document Exhibit P-I-12-g, isang certification dated April 4, 2024—stipulated document with the Defense, Your Honor—please identify the same, also being flashed on the screen.

Ms. Del Campo. Yes po, ito po iyong certification na naka-attach sa response ng OVP.

Ms. Kapunan. Correction, Your Honor, it's not stipulated.

What relation does this certification have to the one you mentioned?

Ms. Del Campo. *Ito po iyong same certification na naka-attach po sa response ng OVP.*

Ms. Kapunan. *Ano naman ang significance? Bakit—anong significance nitong certification na sinabmit (submit) nila?*

Ms. Del Campo. *Ito po ay isinabmit (submit) nila to support po the payment of rewards. Under po kasi sa joint circular, 'pag may payment of rewards, dapat po subject ito sa tatlong conditions. And kasama po iyon, iyong documents evidencing success of the information gathering and/or surveillance activities.*

Ms. Kapunan. *Noong nag-testify dito si Attorney Wamil, sinabi niya noong tinanong siya ng Prosecution: "Ito ba ay compliant?" At ang sagot niya ay: "Ito ay pro forma." Copy-paste ang sinabi ng Prosecution. Kino-confirm mo ba iyan, na ito ay parang annex?*

Ms. Del Campo. *Ito pong certification na ito, hindi po ito kasama doon sa annexes sa joint circular. Ang sinasabi po niyang certification is iyong certification ng accountable officer. Iyon po iyong kasama sa annexes sa joint circular.*

Ms. Kapunan. So, ano nga ang significance nitong certificate, if you know?

Ms. Del Campo. *Ito po iyong sinabmit* (submit) *nila para po* as proof of success of the information-gathering and surveillance activities *po* to support the payment of rewards.

Ms. Kapunan. Together with this, *mayroon rin sinabmit* (submit), earlier you mentioned, *ang* Office of the Vice President *ng tinatawag na* Protective Intelligence Operation Reports *o tinatawag na* PIOR *na in-attach nila sa* response. If shown to you, Madam Witness, will you be able to identify these PIORs?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. For the first and second quarters of the Office of the Vice President.

For the record, Your Honor, these Protective Intelligence Operations Reports or PIORs have been marked in exhibit—pre-marked as P-I-12-h up to P-I-12-h-9 and Exhibits P-I-12-m-1 up to P-I-12-m-13 for the Prosecution.

The Presiding Officer. Which, for the record, is I-115-OVP and series for the Respondent, correct, Attorney Kristine?

Ms. Ferrer. Yes, Your Honor.

The Presiding Officer. Noted.

Please proceed, Counsel.

Ms. Kapunan. Thank you, Madam Witness.

As correctly noted by the Presiding Officer, Your Honor, although this witness is taking time, these are also pre-marked documents of the Defense, Your Honor, although they again refused to stipulate on the same.

Ms. Kapunan. Permission to sit down, Your Honor.

The Presiding Officer. Sure, Attorney Lorna.

While we are waiting, Chair would like to inform the Senator-Judges and the Parties that we will be pausing for lunch break at 12, regardless of where we are, since, clearly, we might not be able to finish with the direct before 12. So, *kung saan man tayo abutan, hanggang doon lang din po tayo*, and we will continue after lunch.

Ms. Kapunan. Your Honor, we will be able to finish before lunchtime with the Office of the Vice President.

The Presiding Officer. Yes, but not with the witness, Counsel.

Ms. Kapunan. Not with the witness. And after lunch, Your Honor, with the DepEd because of the—

The Presiding Officer. Yes, understood.

Attorney Kristine, you can also sit down if you want to.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. Attorney Lorna, next time, we can provide either a high chair for you so that you can sit while—

Ms. Kapunan. Your Honor, I think the Office of the Clerk misunderstood. I asked for a high chair; they gave me a high podium, Your Honor, which is making it more difficult, Your Honor.

The Presiding Officer. The Clerk of Court is so directed. I think it is more convenient to have a high chair.

Ms. Kapunan. Yes, Your Honor. Thank you.

The Presiding Officer. I'd rather call it a high chair, Attorney Kapunan, than a bar stool.

Ms. Kapunan. With due respect, Your Honor, I am more familiar with bar stools.

The Presiding Officer. I would know. I would have thought, Counsel.

Yes, Ms. Xylene? Are you just about done, Ma'am?

Ms. Del Campo. Yes *po*, Your Honor.

The Presiding Officer. Are you ready, Ms. Xylene?

Ms. Del Campo. Yes *po*, Your Honor.

Ms. Kapunan. Thank you, Your Honor.

The Presiding Officer. Attorney Lorna, you may proceed.

Ms. Kapunan. With the permission of this Honorable Court.

Thank you, Ma'am.

Madam Witness, you have gone over PIORs, or Protective Intelligence Operations Reports, which were attached to the Office of the Vice President's Response for the first and second quarter of 2023. Madam Witness, *sa tiningnan mong reports na iyan at na-evaluate mo na reports na iyan, ano ang mga observation mo?*

Ms. Del Campo. *Doon po sa Protective Intelligence Operations Reports, ito po ay in-attach nila kasama iyong certification as documents evidencing success. And based po sa aking evaluation ng mga PIORs, ang nakalagay po rito is ang date and locations ng mga engagement ng Vice President, kasama na din po iyong mga satellite offices nila. Nakalagay din po dito iyong probable threats doon sa mga activities na ito, pati na rin po iyong narratives ng timeline of events magmula sa planning stage, actual operation, and post-operation. Pero during the evaluation po ng documents na ito, hindi ko po nakita iyong particular accomplishments po na magwa-warrant sa payment of rewards.*

Ms. Kapunan. *Okay. Bakit sinabi mo na—napakahaba ng mga dokumentong ito, bakit sinabi mo noong na-evaluate mo ay hindi mo nakita iyong hinahanap mo o iyong kailangang kasama nito sa mga dokumentong ito? Bakit, Madam Witness?*

Ms. Del Campo. *Under po kasi sa Joint Circular, iyon nga po, sa "Payment of Rewards," it should be supported with documents evidencing success. Pero based po sa mga documents na ito, ang nakalagay lang po doon sa certification is a general statement that there were no untoward incidents doon sa mga engagement ng Office of the Vice President, together with the implementation ng programs, pero hindi po ito naging sapat.*

Ms. Kapunan. *Ano-ano itong mga programs na sinasabi nila na pinaggamitan ng confidential funds? Wala ka bang nakita dito sa mga sinabmit (submit) na kadami-daming mga dokumento? Anong specifics nitong activities allegedly na pinaggamitan?*

Ms. Del Campo. *May mga activities po sa mga meetings, mga attendance po sa mga festival, ganoon po, at saka iyong mga engagement din po noong satellite offices.*

Ms. Kapunan. *Hindi ba qualified ito? Hindi ba allowed ito, iyong mga nagmi-meeting, nagmi-meeting-meeting? Paano mo malalaman? How can you ascertain that these meetings are not—are indeed to discuss confidential activities?*

Ms. Del Campo. *Kasi po ang nakalagay lang po doon is kung ano iyong activity na in-attend-an (attend) doon po ng Vice President. Kasama na rin po iyong mga program ng mga satellite offices niya, pati po iyong Libreng Sakay Program ng OVP.*

Ms. Kapunan. Libreng Sakay Program?

Ms. Del Campo. *Opo, kasama po doon sa PIORs.*

Ms. Kapunan. *Hindi ba ito confidential, 'yung libre na sakay na iyan?*

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. *Ano pa 'yung mga activities ng satellite offices na sinasabi mo na hindi naman tamang paggamit ng confidential funds?*

Ms. Del Campo. *Iyong mga—puwede pong mabalikan 'yung—*

The Presiding Officer. Assisting Counsel may approach.

Ms. Del Campo. *Dito po sa isang satellite office po nila sa Bacolod, ang nakalagay po rito na activity nila is "Provided rice box to Murcia fire victims."*

Ms. Kapunan. *Sandali.* Rice box to fire victims?

Ms. Del Campo. Murcia fire victims.

Ms. Kapunan. *Baka confidential ang rice victims na iyan, Madam Witness.*

Ms. Del Campo. *Tapos* TUPAD beneficiaries at BCNHS Gym.

Ms. Kapunan. Can you speak to the mic, please?

Ms. Del Campo. TUPAD beneficiaries at BCNHS Gym; DOLE TUPAD payout May 1, 2023, 198 recipients; daily wage for 50, a total of 841 cash disbursed 10 days.

Ms. Kapunan. *Mga* TUPAD beneficiaries, *nilista diyan kung magkano?*

Ms. Del Campo. *Ito po 'yung mga naging activity po doon sa Bacolod.*

Ms. Kapunan. So, rice giving, TUPAD activities, *ano pa?*

Ms. Del Campo. Medical mission *po.*

Ms. Kapunan. Medical mission.

Ms. Del Campo. Release of rice boxes to beneficiaries in Sebaste, Antique; visited MAIPP hospitals and provided GLs at billing accounting offices to get a copy of SOA. *Iyon po.*

The Presiding Officer. With indulgence of Counsel.

Ms. Xylene, these are the activities *na sinasabi nilang kinober (cover) noong* intelligence operations.

Ms. Del Campo. *Ito po 'yung in-attach nila as proof of success of the information gathering.*

The Presiding Officer. *Ng* activities *nga?*

Ms. Del Campo. *Opo.*

The Presiding Officer. Not that *ginamit 'yung confidential fund sa pagbigay ng bigas*, not that *ginamit 'yung confidential fund sa pagbigay ng TUPAD*, not that *ginamit 'yung confidential fund sa MAIPP?*

Ms. Del Campo. *Opo. Bale po, ito 'yung naging activities ng Vice President po, pero hindi po 'yung confidential fund 'yung ginamit dito.*

The Presiding Officer. *Na naging ligtas siya, 'ika nga, base sa protective activities.*

Ms. Del Campo. *Opo, parang conducted surveillance activities po sa mga programang ito.*

The Presiding Officer. Okay. You may proceed, Counsel.

Ms. Kapunan. Again, *para sa record, itong mga activities daw, 'yung mga rice giving, 'yung mga TUPAD na iyan, doon siya nag-conduct ng surveillance activities? Iyon ba ang sinasabi mo, Madam Witness?*

Ms. Del Campo. *Ang nakalagay po kasi doon sa certification, nag-conduct siya ng confidential activity—surveillance activities before po—parang ang pagkaka-intindi ko po dito is 'yung nag-conduct sila ng surveillance activities before the engagement of the Vice President po. Parang ganoon.*

Ms. Kapunan. *At sinabi mo na kasama ito sa Notice of Disallowance?*

Ms. Del Campo. *Opo, kasi hindi napapakita ng mga dokumentong ito kasama 'yung certification na there was success in the information-gathering and surveillance activities, kasi 'yung statement lang po is "There were no untoward incidents." Hinahanap ko po kung ano 'yung—*

Ms. Kapunan. *'Pag sinabing—Madam Witness, 'pag sinabing, "There were no untoward incidents," hindi ba evidence of success iyon? Walang—'yung mga komunista, 'yung mga terorista, imbes na nag-away-away eh tumanggap na lang ng rice pack, tumanggap na lang ng TUPAD. Hindi ba success iyon? Hindi sila nag-away-away?*

Ms. Del Campo. *Ang hinahanap ko po kasi dito, sample po doon sa isang activity is, nakalagay, "probable threat CTG," parang ganoon, NPA po. Ang hinahanap po kasi is payment of rewards. Mayroon bang—doon sa probable threat na iyon, may nahuli ba? Parang ganoon po, iyon ang magwa-warrant ng payment of rewards po.*

Ms. Kapunan. *At wala kang ganoon na nakita sa evaluation mo, Madam Witness?*

Ms. Del Campo. *Opo.*

Ms. Kapunan. *Going now to the third quarter of 2023, covering the period July 14 to September 30, 2023. Anong participation mo, if any, Madam Witness, dito sa pag-audit ng liquidation documents na isinabmit (submit) ng Office of the Vice President?*

Ms. Del Campo. *Ako po ang nag-evaluate ng response nila sa Audit Observation for the third quarter po ng 2023.*

Ms. Kapunan. *At, Madam Witness, ano ang nangyari, if any?*

Ms. Del Campo. *Noong ma-issue po 'yung Audit Observation Memorandum noong August 8, 2024, nag-submit po ang OVP ng response nila noong August 27, 2024.*

Ms. Kapunan. *If shown to you the AOM, 'yung Audit Observation Memorandum—this is a stipulated document, Your Honor, stipulated with the former witness, Atty. Wamil—Ah, with you? Oh, with you. What is the relation of this AOM dated August 8, 2024, marked as...*

The Presiding Officer. *Assisting Counsels may approach.*

Ms. Kapunan. *...Exhibit P-I-12-i for the Prosecution and stipulated upon in the last hearing with Defense Counsel?*

The Presiding Officer. *As Respondent's Exhibit I-106-OVP.*

Ms. Ferrer. *Correct, Your Honor.*

Ms. Del Campo. *This is the same copy po of the AOM na na-issue namin sa OVP.*

Ms. Kapunan. *Now, showing to you and it is being flashed on the screen as it is being shown to you, sa last page, pakitingin sa last page, mayroong signature diyan over the name Nilda Plaras. Whose signature is this?*

Ms. Del Campo. *Si Assistant Commissioner Nilda Plaras po ang officer in charge ng ICFAO noong ma-issue po ang dokumento na ito.*

Ms. Kapunan. *Anong ibig sabihin na pumirma ang isang Nilda Plaras na Commissioner Associate—Assistant Commissioner ng COA-ICFAO?*

Ms. Del Campo. *Ito po ay na-review at na-approve niya and is ready for release na po.*

Ms. Kapunan. *Okay. Ano-ano, if at all, ang mga findings or issues na ni-raise mo na inaprub (approve) naman ng Assistant Commissioner? Ano-ano 'yung mga issues na nakalagay diyan sa AOM or Audit Observation Memorandum, Madam Witness?*

Ms. Del Campo. *Ang mga issues po dito sa Audit Observation Memorandum na ito is, first, the submitted liquidation documents po, wala pong naka-attach na documentary evidence of payments.*

Ms. Kapunan. *Your Honor, we request permission to flash this on the screen.*

The Presiding Officer. *Counsel may do so.*

Ms. Del Campo. *Iyong pangalawa naman po, 'yung payment of rewards na nagkakahalaga ng P35 million were not supported with documents evidencing success. Pangatlo po, 'yung physical and financial plan, hindi po naka-specify 'yung specific confidential activities. At 'yung*

pang-apat po, 'yung Box E ng disbursement voucher kung saan makikita 'yung receipt of payment ng SDO ng cash advance ay hindi po napirmahan.

Ms. Kapunan. *Bakit-Itong apat na findings na ipinakita natin ngayon, bakit hindi compliant ito at inilagay n'yo sa notice sa AOM?*

Ms. Del Campo. *Iyong sa una po, under the joint circular po, dapat po ang disbursement for confidential fund should be supported with documents evidencing payments po.*

Ms. Kapunan. *At?*

Ms. Del Campo. *Hindi po ito nai-submit sa amin kaya po hiningi namin sa AOM.*

Ms. Kapunan. *Iyong pangalawang finding na sinabi mo?*

Ms. Del Campo. *Iyong pangalawa naman po, 'yung payment of rewards. Under the joint circular, under item 4.8.5.B, it should be supported with documents evidencing success. Pero doon sa initial submission po nila, walang naka-attach na documents evidencing success to support the payment of rewards.*

Ms. Kapunan. *At 'yung pangatlong finding, bakit nasa AOM n'yo ito?*

Ms. Del Campo. *Kasi po 'yung sa physical and financial plan po nila, hindi naka-specify kung ano 'yung confidential activities na paggagamitan na magiging basis po ng disbursement ng confidential fund.*

Ms. Kapunan. *At, Madam Witness, lastly, 'yung findings mo, 'yung pang-apat, bakit sinasabi n'yo na—bakit isinama ito sa Audit Observation Memorandum?*

Ms. Del Campo. *Iyong Box E po kasi ng disbursement voucher kung saan pumipirma 'yung SDO kapag na-receive na niya 'yung tseke is wala pong pirma 'yung Special Disbursing Officer.*

Ms. Kapunan. *Okay. After you issued this AOM, ano ang ginawa, if any, ng Office of the Vice President?*

Ms. Del Campo. *After po nilang mag—after nilang ma-receive itong Audit Observation Memorandum, nag-submit po sila ng response noong August 27, 2024.*

Ms. Kapunan. *And, if shown to you, 'pag ipinakita sa iyo itong response dated August 27, 2024, would you be able to identify the same?*

Ms. Del Campo. *Yes po.*

Ms. Kapunan. *Your Honor, please, witness is looking at Exhibit P-I-12-j. Again, despite this being the response of the Vice President herself, Counsel for Defense did not stipulate on this document.*

The Presiding Officer. *But they marked it as Exhibit I-116-OVP and series, correct, Counsel?*

Ms. Ferrer. *Correct, Your Honor.*

Ms. Kapunan. *Yes, Your Honor.*

The Presiding Officer. *Proceed, Counsel.*

Ms. Kapunan. *Who signed this response, if you know?*

Ms. Del Campo. *Si Atty. Zuleika T. Lopez at si Mr. Lemuel G. Ortonio po.*

Ms. Kapunan. *Again, Madam Witness, you are familiar with these signatures for the same reason you stated?*

Ms. Del Campo. *Yes po, kasama po ito doon sa specimen signatures na naka-attach po sa liquidation documents.*

Ms. Kapunan. *Dito sa response ng Office of the Vice President, mayroon bang mga dokumento na sinama dito sa response na ito?*

Ms. Del Campo. *Yes po.*

Ms. Kapunan. *Ano-ano itong mga documents?*

Ms. Del Campo. *Nag-submit po sila ng acknowledgment receipts as documents evidencing payments. Tapos, to support po the payment of rewards, nag-submit sila ng certification ni Colonel Raymund Dante P. Lachica, together with the protective intelligence operations report, at 'yung panghuli pong attachment ay 'yung warrant register.*

Ms. Kapunan. Okay. By agreement and upon direction of the Presiding Officer, we will be marking instead a tabulation of these acknowledgment receipts for the period July 14 to September 30, 2023, representing the third quarter liquidation—alleged liquidation expenses of the Office of the Vice President without—of course, without prejudice to the right to our opportunity to present them at the appropriate time separately to the appropriate witnesses in the future, Your Honor.

The Presiding Officer. Duly noted.

Ms. Kapunan. Madam Witness, if you are shown acknowledgment receipts, would you be able to identify them?

Ms. Del Campo. Yes po.

Ms. Kapunan. We will not show them now, but did you prepare, if at all, a tabulation or summary of these acknowledgment receipts for the third quarter?

Ms. Del Campo. Yes po, mayroon po akong tabulation.

Ms. Kapunan. Would you please show them to us?

We have copies, Your Honor, of these tabulations or summaries and, for the record, we are giving the Honorable Presiding Officer and Counsel for the Respondent copy of the summaries.

Madam Witness, these summaries that you prepared, tell us the process involved. *Ano-ano ang ginawa mo? Paano ka nakarating sa mga tabulation o summary na iyan?*

Ms. Del Campo. *Noong ma-receive ko po 'yung documents na sinabmit (submit) kasama po ng response, in-encode ko po 'yung mga acknowledgment receipts na naglalaman po ng disbursement nila by date, activity, and the amount po.*

Ms. Kapunan. And we have selected a few of these acknowledgment receipts. If shown to you, please identify the same. P-I—being flashed on the screen. *Pakibasa nga ng mga pangalan dito.*

Ms. Del Campo. "Acknowledgment receipt; This is to acknowledge receipt of the amount of P130,000 for the purchase of information, received by name: Beverly Claire Pampano, date: September 9, 2023."

Ms. Kapunan. This is P-I-8-2051, in the name of Pampano.

P-I-8-2107, *Keso naman ito. Keso.* Please read.

Ms. Del Campo. Acknowledgment—

Ms. Kapunan. Cheese. In English, cheese. Matthew N. Keso, 7-15-23. *Magkano ito, Madam Witness?*

Ms. Del Campo. P250,000 po at na-receive ni Matthew N. Keso noong July 15, 2023.

Ms. Kapunan. *Ginamit for payment of supplies.*

Ms. Del Campo. Opo.

Ms. Kapunan. *Ang susunod, Nova Santos, P50,000, P-I-8-2147, payment for the purchase of supplies. Another one, P-I-8-2195 sa isang Salah Casim, 8/11/2023 for P180,000. Itong payment of supplies na ipinakita natin, ito ba ay allowable expense ng confidential funds?*

Ms. Del Campo. Yes po, under 4.8.4 of the joint circular po.

Ms. Kapunan. Purchase of supplies? Is this compliant with the joint circular?

Ms. Del Campo. *Iyon po, 'yung sa purchase of supplies, based on the acknowledgment receipt*

po na ito, hindi ko ma-asertain na talagang pinambili siya ng supplies kaya humingi po ako ng additional documentation.

Ms. Kapunan. So, *inilagay sa acknowledgment receipt "purchase of supplies," hindi naman ine-explain saan binili 'yung supply?*

Ms. Del Campo. *Wala po. Ito lang pong acknowledgment receipt ang sinabmit (submit).*

Ms. Kapunan. *Saan ginamit 'yung supply? Wala din?*

Ms. Del Campo. *Nakalagay lang po dito na for confidential operation.*

Ms. Kapunan. Okay. *Lahat ng sinabi, 'no. At 'yung mga sinasabi ditong payment of supplies pa, kagaya nitong—okay, P-I-8-1933, Renan Piatos, purchase of information naman ito. P-I-8-2258 kay Xiaome-Siomai? Xiaome Ocho, P100,000, purchase of supplies. Another one, P-I-8-2092 flashed on the screen, sa isang Jay Kamote, P200,000, payment of purchase of supplies, 8/11/2023. At itong mangga. Gumawa 'ata ng fruit salad ito, may kamote, may mangga, may keso. P-I-8-2262, Miggy Mango for P50,000. Anong masasabi mo dito, Madam Witness?*

Ms. Del Campo. *Iyong mga acknowledgment receipts po na purchase of supplies, hiningan ko po ng additional documentation to ascertain po na ipinangbili po talaga ito ng supplies.*

Ms. Kapunan. We will finish this. Kokoy Villamin, P-I-8-2064, P50,000. *Bumili daw siya ng information. Last three—last four in this list, P-I-8-2635 for Contis, Connor Adrian, 9/20/2023 for P50,000, reward payment; P-I-8-2178, Honeylet Camille Sy, 8/3/2023, P350,000; P-I-8-2665, Kristine Applegate Estrada, P50,000 for reward payment; and last, but not the least, P-I-8-2010, isang Denise Tanya Escudero, August 25, 2023. Bumili ng information itong Escudero for P120,000, Madam Witness.*

May Keso, may Escudero, may Honeylet, may Estrada. Anong observation mo dito sa mga selected ARs na ipinakita sa iyo?

Ms. Del Campo. *Iyong sa mga payment of rewards po, hindi po siya supported ng documents evidencing success. And iyon sa purchase of supplies po, hiningan ko po ng additional documentation to ascertain na ibinayad po talaga ito para sa supplies na ginamit sa confidential operations.*

Ms. Kapunan. Your Honor, please, we just have three certifications for the Office of the Vice President and then we will go to the DepEd, but it's now 12 o'clock, and with the names Apple, Keso, Mangga, and *et cetera*, I think it is time for us to have lunch, Your Honor.

With the permission of this Honorable Court, request for continuance, Your Honor.

The Presiding Officer. Of course, Counsel. If you think it is a good time to pause so that your direct examination may not be cut at an inappropriate time, the Chair will accede to that.

Ms. Kapunan. May we ask that the witness be temporarily excused, Your Honor?

The Presiding Officer. The witness is excused for lunch.

Kain ka muna, Ma'am Xylene.

Ms. Del Campo. Thank you po, Your Honor.

SUSPENSION OF TRIAL

With the permission of the Court, the trial was suspended.

It was 12:01 p.m.

RESUMPTION OF TRIAL

At 12:36 p.m., the trial was resumed.

DIRECT EXAMINATION OF THE WITNESS*(Continuation)*

Ms. Del Campo. Good afternoon *po*.

Ms. Kapunan. Before we ended the morning proceedings, you identified acknowledgment receipts, *tama*?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. *Maliban dito sa mga* acknowledgment receipts, what other documents were attached to the Office of the Vice President's response, if any?

Ms. Del Campo. To support *po* the payment of rewards, *nag-attach po sila ng* certification from Colonel Dante P. Lachica and the Protective Intelligence Operation Reports for the third quarter of 2023.

Ms. Kapunan. If shown to you these certifications *na minensiyon* (mention) *mo*, will you be able to identify the same?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. Showing to you, Madam Witness, certification dated September 30, 2023, pre-marked as Exhibit P-I-12-k. Also being shown on the screen, with the kind permission of this Honorable Presiding Officer.

What relation does this certification have *sa sinabi mong in-attach sa* response *ng* Office of the Vice President?

Ms. Del Campo. This is the same copy *po ng* certification attached to their response.

Ms. Kapunan. *Ano naman ang* observation or significance *nitong* certification?

Ms. Del Campo. *Ito po ay in-attach nila* to support the payment of rewards. Under the joint circular *po kasi*, if it is for payment of rewards, it should be supported with documents evidencing success. And based on this document *po*, *hindi ko po nakita iyong* particular accomplishment that will warrant the payment of rewards.

Ms. Kapunan. So *itong* certification *na in-identify mo*, compliant *ito sa* joint circular *na pinagbasehan mo ng* evaluation?

Ms. Del Campo. *Hindi po*.

Ms. Kapunan. *Sinabi mo walang* supporting documents evidencing success. *Ano ba dapat ang mga dokumentong* supporting success *ng* operations?

Ms. Del Campo. Based *po sa* joint circular, *wala pong in-identify doon*. *Ang sinabi lang* is documents evidencing success, *pero based sa* evaluation *ko dito sa dokumento na ito*, *hindi ko po nakita iyong* particular accomplishment *na* proof of success *po*.

Ms. Kapunan. Also earlier, *sinabi mo na* together with the Vice President's response, *mayroon siyang in-attach na tinatawag na* protective intelligence operation reports, *tama*?

Ms. Del Campo. *Opo, tama po*.

Ms. Kapunan. If shown to you, *pag pinakita sa iyo itong* PIOR, Protective Intelligence Operation Report, would you be able to identify them?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Showing to you, Madam Witness, what was pre-marked as Exhibits P-I-12-l up to P-I-12-l-10. Tell this Honorable Court if these are the certifications on the Protective Intelligence Operation Report that you mentioned.

Likewise, with the permission of the Presiding Officer, being flashed on the screen for easy reference of the Impeachment Court.

The Presiding Officer. Will the tech kindly check *kung saan nanggagaling iyong ingay na* *iyon*?

For the record, witness is perusing, I presume, counsel, Exhibit P-I-12-1-1 up to P-I-12-1-10, the PIOR of the engagements of the Vice President, as well as the certification dated September 30, 2023, Exhibit P-I-12-K, respectively, Respondent's Exhibit I-1-16 OVP and series.

Ms. Kapunan. We would also like to manifest for the record, Your Honor, that despite these being prosecution's exhibits and marked as well separately as defense' exhibits, these being documents submitted to the COA-ICFAO, Your Honor, the Office of the Vice President, counsel for the Office of the Vice President or for the respondent refused to stipulate to these documents, Your Honor, for the record.

The Presiding Officer. The Clerk of Court is directed to kindly instruct the tech to check what's wrong with the mics. And the tech is directed to, he is allowed rather to come here to plenary to look at it, if necessary.

Counsel may proceed. I believe the witness is through perusing the documents.

Ms. Kapunan. Thank you, Madam Witness.

Having gone over these documents, Madam Witness, P-I-12-1 *hanggang* P-I-12-1-10 *na* reports *ng* Protective Intelligence Operations, *ano-ano ang mga engagements na nakita mo sa mga reports na ito?*

Ms. Del Campo. *Doon po sa mga engagement ni vice president iyang attendance po niya sa mga meeting, sa mga commencement exercises po. Tapos dito naman po sa mga satellite offices niya, may mga tree planting activities po, mga courtesy visits and coordination meetings po. And lahat po ng naging engagement nila for the third quarters of 2023.*

Ms. Kapunan. *Iyong mga nakalagay sa third quarter ng report na sinabi mo, ganoon din ang nilagay sa first and second quarter na tinstify (testify) mo kanina?*

Ms. Del Campo. *Yes po, may mga activities na pareho po, mga meetings, mga attendance po sa iba-ibang events.*

Ms. Kapunan. Tree planting, meetings, award ceremony, *et cetera*, Madam Witness?

Ms. Del Campo. *Opo.*

Ms. Kapunan. Okay. *Sinabi mo rin kanina na hindi ito compliant sa joint circular. Dito sa mga sinabmit (submit) na in-identify mo, compliant na ba ito sa joint circular?*

Ms. Del Campo. *Hindi pa din po naipakita sa mga dokumentong ito iyong particular accomplishment na will warrant the payment of rewards.*

Ms. Kapunan. *Pero on clarification of the Presiding Officer, tinanong kung ano ang hindi compliant. Iyong pagkakaroon ba ng tree planting o iyong sinasabi nilang activity in connection with confidential funds? Sa tree planting na iyan, ano ang nakikita mo na activity in connection with alleged surveillance?*

Ms. Del Campo. *Iyon po kasing nakalagay doon sa certification, nagkakaroon po sila ng surveillance activities before iyong mga activities na ito.*

Ms. Kapunan. Bago—Yes.

Ms. Del Campo. *Pero based po kasi sa evaluation ko, hindi po kasi naipakita dito kung ano iyong particular accomplishment that will warrant the payment of rewards. Gaya po sa isang activity na nakalagay nga po ang probable threat is iyong sa CTG, mga NPA ganyan po. Hindi po makita sa mga dokumentong ito na itong probable threats na ito, ano iyong naging successful result? Mayroon bang nahuli sa mga ito? Ganoon po iyong hinahanap namin as support sa payment of rewards.*

Ms. Kapunan. *Pero itong sinasabi mong evidence of success, ilan ang NPA o ilan ang terorista, ilan ang komunistang nahuli, hindi ba iyan confidential information na hindi dapat nila i-divulge, Madam Witness?*

Ms. Del Campo. *Sa COA po kasi, hinihingi po namin iyon para mapatunayan talaga na naging totoo iyong payment of rewards.*

Ms. Kapunan. *So, hindi puwedeng sabihin na, "Ay! Hindi namin puwedeng i-divulge kasi confidential iyan." Kailangan pa rin under the joint circular na mapatunayan iyong success noong panggastos ng confidential funds sa resulta na sinasabi na nabawasan ang terorista, nabawasan ang insurgency? Kailangan pa rin document, Madam Witness?*

Ms. Del Campo. *Yes po para po mapatunayan iyong pagbibigay ng payment of rewards.*

Ms. Kapunan. *After itong Office of the Vice President's response in relation sa third quarter expenditure, February 6 to September 30, 2023 at saka sa first and second quarter, ano nangyari? What happened next after all of these responses of the Office of the Vice President for the three quarters?*

Ms. Del Campo. *During po the evaluation ng responses sa dalawang AOM, nagkaroon po ng Committee on Good Government and Public Accountability hearings po noong November 2024 at dito po nagkaroon ng statement si Ms. Gina Acosta, ang special disbursing officer ng OVP, na by the directive of VP Sara, binibigay po niya ang cash advance for confidential fund kay Colonel Raymund Dante P. Lachica.*

Ms. Kapunan. *Before we go into that. Your Honor, please, Presiding Officer, this witness alluded or has testified that there was a Committee on Good Government and Public Accountability (CGGPA) hearing. Kailan ito?*

Ms. Del Campo. *November 2024 po.*

Ms. Kapunan. *Yes. For the understanding and appreciation of this Honorable Court, this was subject of a motion for judicial notice of the prosecution and the transcripts of that hearing as to its actual occurrence, as to what transpired, Your Honor, have been subject of judicial notice, Your Honor.*

Madam Witness, sinabi mo na nag-testify si Ms. Gina Acosta, nandoon ka ba sa hearing na iyon?

Ms. Del Campo. *Yes po, nandoon po ako sa hearing na iyon.*

Ms. Kapunan. *Bakit ka nandoon sa hearing na iyon?*

Ms. Del Campo. *Kasama po ako sa resource persons from COA na um-attend po doon.*

Ms. Kapunan. *Na-subpoena ka ba?*

Ms. Del Campo. *Yes po.*

Ms. Kapunan. *Bakit ka sinubpoena (subpoena)?*

Ms. Del Campo. *Kasi ako po iyong staff na nag-conduct ng evaluation po noong mga documents na sinabmit (submit) in relation sa liquidation ng confidential fund ng OVP at DepEd.*

Ms. Kapunan. *Okay. And you said that in that hearing of the Committee on Good Government and Public Accountability, eh nag-testify ang isang Ms. Gina Acosta. Ito bang Ms. Gina Acosta, iyong sinabi mo kanina na chief of staff—Ah, hindi. Sino ito? SDO ng Office of the Vice President?*

Ms. Del Campo. *Yes po, si Ms. Gina Acosta po.*

Ms. Kapunan. *At nakilala mo siya sa hearing na iyon na nandoon talaga siya?*

Ms. Del Campo. *Opo, nagpakilala po siya.*

Ms. Kapunan. *Nagpakilala siya sa iyo?*

Ms. Del Campo. *Hindi po, doon sa hearing po, kaya na-identify ko po na siya po iyon.*

Ms. Kapunan. *And anong sinabi niya? Anong narinig mong sinabi niya sa hearing na iyan?*

Ms. Del Campo. *Na by the directive po of VP Sara binibigay niya kay Colonel Raymund Dante P. Lachica, head ng Vice Presidential Security and Protection Group, iyong cash advance po for confidential fund.*

Ms. Kapunan. *Na sinabi kay Gina Acosta ng Vice President na ibigay niya kay isang Colonel Lachica. Sino itong Colonel Lachica?*

Ms. Del Campo. *Siya po iyong head ng Vice Presidential and Security Group po noong time na iyon.*

Ms. Kapunan. *Itong Colonel Lachica, hindi siya senior disbursement officer? Special disbursement officer?*

Ms. Del Campo. *Hindi po siya ang SDO.*

Ms. Kapunan. *Ano ang kinalaman ng isang head ng security sa disbursement ng confidential funds kung alam mo?*

Ms. Del Campo. Under po kasi sa joint circular, nakalagay po doon sa responsibility ng SDO na siya iyong magdi-disburse ng cash advance. And mayroon din pong provision under 6.1.1 na, "under no circumstance shall cash advance for confidential fund be transferred from one accountable to another" po.

Ms. Kapunan. So, kung ano ang nakalagay sa circular na iyan, 6.1.1, iyon lang dapat ang officer na dapat mag-disburse ng pondo?

Ms. Del Campo. Yes po, si SDO lang po.

Ms. Kapunan. Eh, paano kung ang vice president mismo, vice president, iyong head ng agency ang siya mismong nag-instruct kay Ma'am Gina Acosta, na ibigay ni Gina Acosta, kaniyang SDO, kay Colonel Lachica, tama ba iyon sa palagay ninyo o sa evaluation ninyo, Madam Witness?

Ms. Ferrer. [off-mike] Objection, Your Honor.

The Presiding Officer. Kindly turn on the mic of the counsel for respondent, tech. And why is it off?

Ms. Ferrer. Hello—The witness is incompetent to answer that question.

The Presiding Officer. If she knows, Counsel. Witness may answer. If you know; if you know Xylene. If you don't, you can also say so.

Ms. Del Campo. Okay po. Thank you po, Your Honor.

Under po kasi sa joint circular, it is the SDO na magdi-disburse ng cash advance, and ang participation po dito ng head of agency is to oversee. Kasama po sa responsibility niya to oversee the agency-wide use ng—kung paano po ginagamit ang confidential fund.

Ms. Kapunan. So ang sagot sa tanong ay—ano. Ang tanong ko ngayon sa sinabi mo, sa palagay mo, bakit ka nabahala na si Ms. Acosta—

Ms. Ferrer. Your Honor.

Ms. Kapunan. I have not yet asked the question, Your Honor.

The Presiding Officer. Let the Counsel finish her question, Counsel for Respondent.

Ms. Kapunan. Why does it concern you, as you stated, that Ms. Acosta admitted to transferring the confidential funds...

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. ... to Colonel Lachica?

The Presiding Officer. Are you done, Attorney Kapunan?

Ms. Kapunan. Yes, Your Honor.

The Presiding Officer. Yes, Counsel for Respondent.

Ms. Ferrer. Your Honor, the witness did not say that she was concerned about it, so that's a leading question. Misleading, sorry. Misleading.

The Presiding Officer. Kindly reform, Counsel. You already established that the witness heard Gina Acosta, under oath, testified that she was instructed by the Vice President to give the funds to Colonel Lachica.

Ms. Kapunan. What observation or significance did you draw from the admission by Ms. Acosta in this Committee on Good Government and Public Accountability hearing? What observation or significance did you draw personally from this admission?

Ms. Del Campo. This is a direct violation *po ng* joint circular, specifically *iyong* Item 6.1.1 *po*.

Ms. Kapunan. Again, 6.1.1. Are you familiar, are you competent to testify on what 6.1.1 is?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. *Bakit?*

Ms. Del Campo. *Kasi po ang nakalagay dito is hindi po puwedeng ibigay ito ng SDO sa ibang officer po.*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel for Respondent.

Ms. Ferrer. The question is unresponsive, Your Honor. She was asked, "Why are you competent to testify on 6.1.1?" The answer, rather, is unresponsive.

The Presiding Officer. Witness is directed to answer yes or no if she is competent. She's going ahead of the horse.

Ms. Del Campo. Yes *po*. *Kasi ang basis po ng audit namin* is the joint circular.

The Presiding Officer. Okay.

Atty. Kapunan, you may proceed.

Ms. Kapunan. What next did you do in relation to the liquidation of the OVP's confidential funds after this committee hearing?

Ms. Del Campo. After *po* the committee hearing, together—after *din po na ma-evaluate iyong mga* liquidation documents and *iyong mga* responses, I drafted *po* a Notice of Disallowance and *sinabmit* (submit) *ko po ito sa aking* division chief for her review.

Ms. Kapunan. Okay. So, *ikaw mismo ang nag-draft ng* Notice of Disallowance?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. *Anong basis nito? Itong* notice of disallowance?

Ms. Del Campo. *Ang una po is iyong direct—iyong kanina pong nabanggit ko na iyong directive ni VP Sara na ibigay ni Ms. Gina Acosta iyong cash advance for CF kay Colonel Lachica, which is violation of under 6.1.1 of the joint circular. And after the violation po ng—after the evaluation po ng responses, the amount of P261,300,000 was also disallowed kasi nga po iyong payment of rewards amounting to P62 million were not supported with documents evidencing success.*

And iyong purchases po nila ng supplies and provision of medical and food aid in a total amount of P199 million, based on the acknowledgment receipts po, hindi ma-ascertain na these are for purchase of supplies kaya po nanghingi ako ng additional documents po.

And iyong pang-apat po is, based sa evaluation ng mga acknowledgment receipts for the third quarter, may disbursement po doon for purchase of information na nabayaran before ma-release iyong cash advance na nagkakahalaga ng P300,000.

Ms. Kapunan. Okay. So, *dahil dito sa mga reasons na iyan, eh nag-issue ka ng* notice of disallowance. If shown to you *itong* notice, will you be able to identify the same?

Ms. Del Campo. *Opo.*

Ms. Kapunan. Your Honor, please, can we ask Atty. Dela Cruz to show—

The Presiding Officer. Assisting Counsel may approach.

Ms. Kapunan. This has been pre-marked as Exhibit P-I-13-f, Your Honor, for the Prosecution.

The Presiding Officer. And for the record, respondent's I-9.

Please proceed, Counsel.

Ms. Kapunan. Yes, Your Honor. Again, for the record, this is likewise the Respondent's exhibit, the same as Prosecution, which again they refuse to stipulate on.

How much, Madam Witness, was disallowed in your notice of disallowance?

Ms. Del Campo. *Iyong buong amount po na P375 million.*

Ms. Kapunan. Three hundred seventy-five million. *Anong period ang covered nitong P375 million na ito?*

Ms. Del Campo. *Bale, ito po ay for the three quarters of 2023. Tig-125 po per quarter.*

Ms. Kapunan. And this is being flashed on the screen as well. *Sino-sino ang responsible persons in connection sa Notice of Disallowance na in-issue ng COA-ICFAO dated March 31, 2026?*

Ms. Del Campo. *Ang mga persons po ay sina VP Sara; the SDO, Ms. Gina Acosta; ang chief accountant, Ms. Julieta Villadelrey; at si Colonel Raymond Dante P. Lachica po.*

Ms. Kapunan. Now, you said that Respondent Duterte—Sara Duterte, is accountable. Why? *Bakit accountable ang Vice President Sara Duterte?*

Ms. Del Campo. Because she approved *po* the transactions and the utilization of the cash advance *po*.

Ms. Kapunan. *Saan iyan—saan nakalagay sa mga dokumento ang in-approve ng Vice President mismo?*

Ms. Del Campo. *Iyong sa accomplishment report po.*

Ms. Kapunan. *Sa mga lahat ng accomplishment reports.*

Ito naman, Ms. Gina Acosta, why do you say that she is also accountable?

Ms. Del Campo. *Kasi po siya ang special disbursing officer at responsibility po niya na i-disburse ang cash advance.*

Ms. Kapunan. Okay. *Pag sinabing "accountable," hindi naman tayo accountant, ano sa layman's term, ang ibig sabihin ng accountable?*

Ms. Del Campo. *Iyong taong may pananagutan po doon sa pondo na ibinigay sa kanya.*

Ms. Kapunan. *May pananagutan. So, ang Sara Duterte, Vice President, may pananagutan.*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *Bakit? Anong nature ba ng pondo na iyan?*

Ms. Del Campo. *Kasi po ito is pondo ng bayan po.*

Ms. Kapunan. *Pondo ng bayan. In English naman ay public funds. Baliklad.*

Ms. Del Campo. *Opo.*

Ms. Kapunan. Ms. Gina Acosta, *bakit naman siya accountable?*

Ms. Del Campo. *Dahil siya po ang designated na special disbursing officer and responsibility po niya na i-disburse ang cash advance.*

Ms. Kapunan. Okay. *At bakit, hindi ba niya ginawa iyong kaniyang responsibility na mag-disburse?*

Ms. Ferrer. Objection, Your Honor. Leading question.

Ms. Kapunan. Why do you say that she is an accountable officer?

The Presiding Officer. Reform, Counsel.

Ms. Kapunan. What?

The Presiding Officer. No, you already did.

Ms. Kapunan. I reformed, Your Honor.

The Presiding Officer. I know. I know. You already did. Please continue.

Ms. Del Campo. *Puwede pong paulit iyong tanong?*

Ms. Kapunan. You mentioned that Gina Acosta ay accountable officer *din*. *Bakit?*

Ms. Del Campo. *Dahil sa kaniya po ibinigay iyong cash advance for—siya po ang dinesigneyt (designate) na special disbursing officer at siya po iyong accountable doon sa pag-disburse ng cash advance for confidential fund.*

Ms. Kapunan. *Sinabi mo na naging basehan mo ang joint circular. Saan naman nakalagay ito sa joint circular na isang SDO ang dapat responsible sa pag-disburse ng tinatawag na public funds?*

Ms. Del Campo. *Nakalagay po ito doon sa responsibility niya, and gaya ng nabanggit ko po kanina doon sa item 6.1.1 na hindi ito puwedeng i-transfer from one accountable to another.*

Ms. Kapunan. Incidentally, *pag ganyan sa mga companies, iyong mga nagha-handle ng mga pondo ay may bond. May bond na tinatawag, 'no? Dito ba sa Office of the Vice President, accountable public disbursement officer ...*

Ms. Ferrer. Objection.

Ms. Kapunan. ... *saan kaya, mayroon ba sa circular ang nakalagay na kailangang magbigay ng bond ang SDO?*

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel for Respondent.

Ms. Ferrer. Leading question.

The Presiding Officer. I'll consider it preliminary, Counsel, because I think it's a given that SDO should have a bond.

Kindly answer, Madam Witness.

Ms. Del Campo. *Nakalagay po ito sa joint circular.*

Your Honor, *puwede po bang mag-refer ako sa joint circular?*

The Presiding Officer. You may, Ma'am Xylene.

Ms. Del Campo. *Nakalagay po ito doon sa item 6.1.2, na sabi po dito, "Cash advances for CF and/or IF shall be drawn by duly designated and bonded SDOs or head of agency for the implementation of a program, activity, and project."*

The Presiding Officer. That would be enough.

Ms. Kapunan. May I proceed?

The Presiding Officer. Counsel may proceed.

Ms. Kapunan. Okay. So, *sa binasa mo, ang SDO ay dapat magbigay ng bond. Do you have any knowledge if this Gina Acosta gave a bond pursuant to the joint circular provision that you read?*

Ms. Del Campo. Yes *po, naka-attach po ito doon sa liquidation documents. Required po ito sa joint circular.*

Ms. Kapunan. *At magkano naman? Kung ang amount ng Office of the Vice President confidential funds ay P500 million, magkano naman ang bond na—Sinabi mo, naka-attach ang*

dokumento sa mga sinabmit (submit) ng OVP, magkano ang bond?

Ms. Del Campo. *Hindi ko na po maaalala iyong kung magkano, pero based po sa evaluation ng mga documents, enough naman po iyong bond ng SDO para i-cover iyong cash advances niya.*

Ms. Kapunan. If the amount—Is the amount stated, if you recall?

Ms. Del Campo. *Hindi ko na po maaalala iyong exact—iyong kung magkano iyong bond. Pero during the evaluation po, hindi po namin naging findings iyon.*

Ms. Kapunan. Okay. Ngayon naman, if the SDO is a bonded—at sinabi mo si Gina Acosta ay may bond, in the provision that you read, is it allowed for Gina Acosta, isang bonded na senior special disbursement officer, na mag-transfer ng kaniyang responsibility sa isa pang officer?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel?

Ms. Ferrer. Leading question, Your Honor.

The Presiding Officer. Actually, I would have sustained it because she—asked and answered. Already answered, Counsel.

Ms. Kapunan. You said—I will reform, Your Honor.

The Presiding Officer. Yes, she already answered that question earlier.

Kindly reform, Counsel.

Ms. Kapunan. *Ito namang Ms. Villadelrey, why did you say she is an accountable officer?*

Ms. Del Campo. *Dahil po doon sa liquidation report, sinertify (certify) niya na complete and proper iyong mga liquidation documents po, pero upon the evaluation po, hindi po ito complete and proper.*

Ms. Kapunan. And Colonel Lachica?

Ms. Del Campo. *Dahil po siya ang nag-disburse ng cash advance despite not being the special disbursing officer ng Office of the Vice President.*

Ms. Kapunan. And why is that—Is this among your observations?

Ms. Del Campo. Yes po.

Ms. Kapunan. And what did your observation indicate about Colonel Lachica?

Ms. Del Campo. *Iyon nga po, iyong naging—Ito po iyong isang mga ground kung bakit po na-disallow iyong total ng P375 million.*

Ms. Kapunan. *Sa pagkaalam namin—Based on our understanding, may mga stages iyan, ano? Ang unang stage ng evaluation ay Audit Observation Memorandum, tama?*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. And in the case of the Office of the Vice President, naka-issue kayo ng AOM?

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. Ang next stage dapat diyan ay ang Notice of Suspension, tama?

Ms. Del Campo. *Opo.*

Ms. Kapunan. Now, in the case of the Office of the Vice President, pagkatapos nagbigay ng response ang Office of the Vice President sa AOM na in-issue ninyo, anong nangyari? Mayroong—anong ginawa ng Office of the Vice President?

Ms. Del Campo. *Nag-respond po sila sa AOM po.*

Ms. Kapunan. So, nag-respond sa AOM. Did the response address—Sinagot ba ng response na iyan ang lahat ng observations, lahat ng non-compliance, lahat ng discrepancy, deficiency na pinoynt (point) out ninyo sa AOM?

Ms. Del Campo. Based *po sa* evaluation *ng mga* responses together with the attached documents *po, hindi pa rin po ito naging* compliant *sa* joint circular.

Ms. Kapunan. And what did you do? What did your office do, if any?

Ms. Del Campo. *Kaya po nag-issue po kami ng* Notice of Disallowance.

Ms. Kapunan. *Bakit, Madam Witness? Sa pagkaalam natin, pagkatapos ng AOM, dapat* Notice of Suspension. *Bakit ninyo agad in-issue ang isang* Notice of Disallowance *at hindi na kayo nagbigay ng* Notice of Suspension *muna? Bakit dineretso ninyo sa* disallowance?

Ms. Del Campo. *Dahil nga po sa naging* statement under oath *ni* Ms. Gina Acosta *na ibinigay niya iyong—na by the directive of VP Sara, ibinigay niya kay* Colonel Lachica *iyong* cash advance for CF, which is a violation *po ng* joint circular, making it irregular *po*.

Ms. Kapunan. Apart from this joint circular of 2015, *mayroon—please confirm kung mayroong mga* rules and regulations *na in-issue ang* COA *para sa mga* settlement of accounts, if you know.

Ms. Del Campo. *Ang basis po namin is* *iyong* rules and regulations on settlement of accounts *po*.

Ms. Kapunan. *Anong ibig sabihin noon? Anong* particular provision?

Ms. Del Campo. *Puwede pong pakiulit iyong tanong?*

Ms. Kapunan. *Sinabi mo na mayroong* rules and regulations on settlement of accounts.

Ms. Del Campo. *Opo, mayroon po.*

Ms. Kapunan. *At, instead of a* Notice of Suspension, *diniretso ninyo agad sa* Notice of Disallowance.

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *Anong pinagbasehan ninyo nito?*

Ms. Del Campo. *Dahil nga po ang* definition *po ng* Notice of Disallowance based on the joint circular is *iyong* transaction *po* appears to be illegal, improper, or irregular. And in this case *po, iyong naging* transfer *po is a* direct violation making the transaction irregular *kaya naging* Notice of Disallowance *na po iyong in-issue* *namin*.

Ms. Kapunan. *Sige. So itong pag-transfer ng* *responsibilidad sa* disbursement *na hindi naman* special disbursement officer *ay, sinabi mo, illegal?*

Ms. Del Campo. *Doon po siya sa* irregular, which is a violation *po siya sa* joint circular.

Ms. Kapunan. Okay. So *iyong* joint circular *nakalagay, illegal, improper, at* irregular. *Ang sinasabi mo ay “irregular.”*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *At bakit* irregular *ulit?*

Ms. Del Campo. *Kasi po hindi po siya—*

Ms. Ferrer. Asked and answered, Your Honor, asked and answered.

The Presiding Officer. Asked and answered, Counsel.

Ms. Kapunan. Okay. What is the status of this Notice of Disallowance at present, if you know?

Ms. Del Campo. Nasa—

Ms. Ferrer. Asked and answered already, Your Honor.

The Presiding Officer. I don't quite remember, Counsel. It will be okay to repeat.

Ms. Kapunan. It was not asked yet, Your Honor.

The Presiding Officer. It would be okay to repeat, nevertheless.

Yes, Xylene.

Ms. Kapunan. What is the status of this Notice of Disallowance?

Ms. Del Campo. *Nasa* prescribed period *pa po ang OVP para po mag-appeal sa* Commission Proper *po*.

The Presiding Officer. With the indulgence of Counsel, and what is the prescribed period to appeal before the Commission?

Ms. Del Campo. One hundred-eighty days *po, after nila ma-receive iyong* Notice of Disallowance.

The Presiding Officer. Six months.

Ms. Del Campo. *Opo*.

The Presiding Officer. You may proceed, Counsel.

Ms. Kapunan. And to your knowledge, is this—are they still well within this six-month period to submit?

Ms. Ferrer. Asked and answered already, Your Honor.

Ms. Kapunan. Your Honor please, it is within—this is follow-up to the question of the Presiding Officer—what is the period? One hundred-eighty days. My question is: is the 180 days still currently applicable?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. Next, Madam Witness—are you still okay?

Ms. Del Campo. *Opo*.

Ms. Kapunan. *Punta naman tayo dito sa* Department of Education.

The Presiding Officer. Before you move on Counsel, with the indulgence of Attorney Kapunan.

Ma'am Xylene, so *dahil ibinigay diumano kay* Lachica ni Gina Acosta *dinis-allow ninyo na lahat?*

Ms. Del Campo. Yes *po, kasi* direct violation *po ito ng* joint circular.

The Presiding Officer. *Subalit dahil hindi iyan dumaan sa* notice of suspension *in-issue ninyo* *iyong* notice of disallowance *nang hindi binibigyan ng* pagkakataon *sumagot muna o magpaliwanag ang* OVP—*wala pa po sila?* *Ngayon pa lang, kung saka-sakali, kung mag-a-appeal sila?*

Ms. Del Campo. *Opo*.

The Presiding Officer. So, you have not heard the side of the Vice President or the OVP's office with respect to what you heard Gina Acosta say under oath in the House hearings? *Wala pa silang response doon?*

Ms. Del Campo. *Wala pa po. Doon na lang po sa* appeal.

The Presiding Officer. *Doon na lamang.* So *in-issue ninyo ito nang hindi naririnig iyong panig nila?*

Ms. Del Campo. *Opo*.

The Presiding Officer. You may proceed, Counsel, to the DepEd.

Ms. Kapunan. What is your participation, Madam Witness, in the post-audit of the confidential funds of the Department of Education for the first quarter and second quarter of 2023—covering the periods February 20 to March 30, 2023 for the first quarter and for the second quarter, April 25 to June 30, 2023? *Ano ang* participation *mo, if any, sa* post-audit *na ito?*

Ms. Del Campo. *Ako po* *iyong* *nag-e-evaluate ng* response *ng* DepEd *sa* audit observation

memorandum na na-issue sa kanila for the first and second quarters of 2023 po.

Ms. Kapunan. You also said earlier that *noong* na-transfer na si Mr. Wamil, na sinundan mo, ay nag-issue siya bago siya umalis ng isang AOM dated February 1, 2024. Do you confirm that?

Ms. Del Campo. Opo. Tama po.

Ms. Kapunan. And to your knowledge, *nagbigay ba ng sagot o* response ang Department of Education, na ang head of agency ay si Vice President Sara Duterte? Mayroon bang response ang office ng DepEd sa AOM dated February 1, 2024 na in-issue ni Mr. Wamil?

Ms. Del Campo. Opo, nag-submit po sila ng response noong April 17, 2024.

Ms. Kapunan. And if I show you a copy of this response dated April 17, 2024, *maa-identify mo ba siya?*

Ms. Del Campo. Opo.

Ms. Kapunan. Showing to you now the Department of Education's response pre-marked as Exhibit P-I-21-b.

The Presiding Officer. And for the Respondent, I-9? Counsel, correct?

Ms. Ferrer. Your Honor, it's D-I-79-DE.

The Presiding Officer. Noted.

Ms. Kapunan. Madam Witness, *ano ang* relation *nitong* document na in-identify mo sa sinabi mong isinabmit na response ng DepEd Secretary?

Ms. Del Campo. This is the same response po na isinabmit sa amin ng DepEd.

Ms. Kapunan. Please look at this document. *Mayroon nakalagay sa* last page, *kaninong* signature ito, *kung alam mo?*

Ms. Del Campo. Kay Attorney Michael Wesley T. Poa po.

Ms. Kapunan. Attorney Michael. Who is this Attorney Michael Poa?

Ms. Del Campo. Based on this document po, undersecretary and chief of staff.

Ms. Kapunan. Okay. Why are you familiar with his signature?

Ms. Del Campo. *Doon po sa dalawang* documents na na-evaluate ko, *pareho po* iyong signature niya *doon sa dalawang* transmittal letters po.

Ms. Kapunan. What were the attachments, if you recall, to this response of the DepEd?

Ms. Del Campo. *Nag-submit po sila ng* acknowledgment receipts, certification from the relevant partners, specifically the Armed Forces of the Philippines.

Ms. Kapunan. *Ano pa?*

Ms. Del Campo. *At saka po* fully accomplished na disbursement voucher. And *mayroon din po pala* silang sinabmit na DepEd Order No. 1.

Ms. Kapunan. You mentioned *na may in-attach sa* response na acknowledgment receipts for the first quarter and for the second quarter by the DepEd. If shown to you, will you be able to identify them?

Ms. Del Campo. Yes po.

Ms. Kapunan. For the first quarter of the DepEd, you have made a summary, please confirm, Madam Witness, of 561 acknowledgment receipts.

Ms. Del Campo. Opo, tama po.

Ms. Kapunan. For the period February 20 to March 30, 2023, *mayroon kang* summary na ginawa?

Ms. Del Campo. Opo, mayroon po.

Ms. Kapunan. *Dala mo ba iyong summary na iyan?*

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Your Honor, please, the witness is producing a summary of 561 acknowledgment receipts for the first quarter liquidation expenses of confidential funds of the Department of Education.

The Presiding Officer. Observation of counsel is noted. You may proceed.

Ms. Kapunan. We are giving copies to Respondent's counsel and to this Honorable Presiding Officer through the Clerk of Court.

The Presiding Officer. Yes, please. The Clerk of Court, through the OSAA, is directed to kindly get the copy.

You may proceed, Counsel.

Ms. Kapunan. We request, Your Honor, that this tabulation for the first quarter prepared by the witness be marked as Exhibit P-I-33.

Madam Witness, for the second quarter of the DepEd, attached to the DepEd's response is 619 acknowledgment receipts. Do you confirm that?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. This is for the period April 25 to June 30, 2023?

Ms. Del Campo. *Opo*.

Ms. Kapunan. Do you have that summary with you?

Ms. Del Campo. Yes *po*, *mayroon po*.

The Presiding Officer. Same order. Kindly mark it and furnish the opposing counsel as well as the Court with a copy.

Ms. Kapunan. For the record, Your Honor, the first quarter is 561 acknowledgment receipts. The second quarter is 619 acknowledgment receipts. So, the summaries of quarter one and quarter two consist of 1,180 acknowledgment receipts, Your Honor.

We request that this be marked as Exhibit P-I-34 for the second quarter.

The Presiding Officer. Noted.

Ms. Kapunan. Madam Witness, *anong proseso ang ginamit mo sa paggawa ng evaluation o tabulation na ito?*

Ms. Del Campo. *Gaya po ng ginawa ko rin sa OVP, tinabuleyt (tabulate) ko po ito by date, iyong activity, and the amount po.*

Ms. Kapunan. Okay. And familiar *ka sa mga ARs na ito*, Madam Witness?

Ms. Del Campo. *Opo*.

Ms. Kapunan. And if shown to you—we will show you some selected examples—also going to be flashed on the screen.

Showing to you Exhibit P-1-17-29 being flashed on the screen.

Madam Witness, *anong pangalan ang nakalagay dito?*

Ms. Del Campo. *Pirma lang po. Ay, hindi ko po mabasa kung pirma ito pero wala pong—*

Ms. Kapunan. *Walang pangalan pero may pirma?*

Ms. Del Campo. *Opo*.

Ms. Kapunan. And *anong place na in-issue?*

Ms. Del Campo. Based *po sa dokumento ang address po is Danao.*

Ms. Kapunan. *At ang date?*

Ms. Del Campo. February 21, 2023 *po*.

Ms. Kapunan. February 21, 2023, for *magkano?*

Ms. Del Campo. Fifty thousand pesos *po* for the payment for information.

Ms. Kapunan. Okay. Can you read the others? P-I-17-81, Alfred Avanta.

Ms. Del Campo. *Nakalagay po*, "Acknowledgment Receipt, date: February 21, 2023, received the amount of P100,000 in payment for supplies. Payee: Alfred Avanta, Address: Malolos."

Ms. Kapunan. Next, P-I-17-288, Mary Santilliano. *Saang place in-issue ito*, Madam Witness, based on the document?

Ms. Del Campo. Based *po sa* document, *ang address pong nakalagay is* Davao City.

Ms. Kapunan. Okay. *Anong date nito?*

Ms. Del Campo. February 21, 2023 *po*.

Ms. Kapunan. The same date, February 21, 2023. Okay. *Galing Malolos, pumunta ng* Davao. Negros Occidental *naman*. P-I-17-382, Amy Liu. *Magkano ito?*

Ms. Del Campo. Forty-five thousand *po* in payment for rental safehouse.

Ms. Kapunan. *Ang date?*

Ms. Del Campo. February 21, 2023 *po*.

Ms. Kapunan. And place is?

Ms. Del Campo. *Ang nakalagay po sa dokumento na* address is Negros Occidental.

Ms. Kapunan. For the next one, P-I-17-492. *Kaninong pangalan ito?*

Ms. Del Campo. *Pirma lang po*.

Ms. Kapunan. *Walang pangalan, may pirma. Saan namang place ibinigay ang perang ito?*

Ms. Del Campo. San Francisco, Agusan del Sur, *po*.

Ms. Kapunan. So, from Negros Occidental, *pumunta ng* Agusan.

Ms. Ferrer. Your Honor, please, Your Honor—

Ms. Kapunan. *Magkano ang*—there is no question yet.

The Presiding Officer. Kindly—

Ms. Kapunan. *Ano ang date*—

The Presiding Officer. I know where you're getting at, but kindly finish your question, Counsel.

Ms. Kapunan. *Anong date ang in-issue nito*, based on this document?

Ms. Del Campo. *Ang date po is* February 21, 2023.

Ms. Kapunan. Okay. The next document—

The Presiding Officer. Counsel for the Respondent, yes?

Ms. Ferrer. Your Honor, can the Counsel be reminded not to make any inferences on the document, Your Honor, like from Malolos, *pumunta ng* Negros, *pumunta ng* Agusan.

The Presiding Officer. Counsel is so reminded, just ask your question to the witness. Let the witness be the one to respond to whatever elicitation or admission you want to get, Counsel. You may proceed.

Ms. Kapunan. Yes, Your Honor, we will comply although it's self-evident that all these documents are dated February 21, 2023.

Like the next one, P-I-17-493 in the name of Andre Galor. Where was it issued, Madam Witness?

Ms. Del Campo. Based *po sa* document, *ang* address *po is* Makati City.

Ms. Kapunan. And what date?

Ms. Del Campo. February 21, 2023 *po*.

Ms. Kapunan. For what amount, Madam Witness?

Ms. Del Campo. One hundred thousand *po* for the payment of rental safehouse.

Ms. Kapunan. And the last in this first set is P-I-17-574. Is there a name? *Anong pangalan ang nakalagay sa dokumento?*

Ms. Del Campo. Minda Lacson *po*.

Ms. Kapunan. *Anong* date?

Ms. Del Campo. February 21, 2023.

Ms. Kapunan. *Anong* place?

Ms. Del Campo. Negros Oriental *po*.

Ms. Kapunan. Madam Witness, based on these seven selected documents presented to you, do you confirm that there is only one date of disbursement?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Asked and answered, Counsel.

Ms. Kapunan. February 21, 2023 is the uniform dates in all of these documents, Madam Witness.

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. I have not yet asked the question.

The Presiding Officer. No, you already did.

Ms. Ferrer. Asked and answered, Your Honor.

The Presiding Officer. You already did, Counsel, if it's the uniform date.

Ms. Kapunan. Okay. What significance can you draw or observation can you make for these six documents issued on the same dates in seven different places from Danao, Malolos, Davao, Negros, Agusan, Makati City, and Negros Oriental? What observation can you make, if any, as regards these acknowledgment receipts that you identified?

Ms. Del Campo. Based *po dito sa mga* acknowledgment receipts *na ito, lahat po sila* is dated February 21, 2023, and *naibigay po sila sa iba-ibang* addresses *po na nakalagay dito*.

Ms. Kapunan. You mentioned earlier on testimony that you have audited many national agencies, correct?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. And at least 30, if I recall right? At least 30 national agencies?

Ms. Del Campo. *Opo*.

Ms. Kapunan. Based on your evaluation, how many government or national agencies have had similar submissions on acknowledgment receipts, if you recall? Same date, different locations, different names— how many, based on your recollection, national or local government agencies have submitted acknowledgment receipts of this nature?

Ms. Del Campo. *Hindi ko na po mabilang, pero may mga nagsa-submit din po ng acknowledgment receipts po*.

Ms. Kapunan. *Ang tanong sa iyo: acknowledgment receipts na pare-parehong araw pero iba-ibang location, mayroon ka bang maalala?*

Ms. Del Campo. *Parang wala. Wala naman po.*

Ms. Kapunan. *Wala. Okay.*

Going now to several acknowledgment receipts, which we will show you—please go over this.

Again, acknowledgment receipts by way of liquidation for the DepEd. Can you please go over this one by one, being flashed on the screen? First is P-I-17-7 for Geraldine Omoy. What date is stated there?

Ms. Del Campo. *Nakalagay po dito, February 25, 2023.*

Ms. Kapunan. And place?

Ms. Del Campo. *Nakalagay po sa dokumento na ito, ang address po is Masbate.*

Ms. Kapunan. *Magkano?*

Ms. Del Campo. Two hundred thousand po for the payment of reward.

Ms. Kapunan. Next, P-I-17-87, *kaninong pangalan ang nandiyan?*

Ms. Del Campo. *Pirma lang po iyong nakalagay.*

Ms. Kapunan. *Walang pangalan. Saan in-issue?*

Ms. Del Campo. *Sa Laoag City po.*

Ms. Kapunan. *Anong date?*

Ms. Del Campo. February 25, 2023 po.

Ms. Kapunan. For how much?

Ms. Del Campo. One hundred thousand po for the payment for supplies.

Ms. Kapunan. Okay. P-I-17-88 to Mr. Jaime Aquino from Davao City. *Magkano?*

Ms. Del Campo. Forty-five thousand po.

Ms. Kapunan. And what date?

Ms. Del Campo. February 25, 2023 po.

Ms. Kapunan. Okay. Next, P-I-17-127, whose name is it, what amount, and what date?

Ms. Del Campo. *Pirma lang po, tapos ang date po niya is February 25, 2023. Ang nakalagay po na address is Agusan del Norte.*

Ms. Kapunan. Next, Madam Witness, Rex Napoles. P-I-17-128. What date, what place, and what amount is stated?

Ms. Del Campo. *Ang date po is February 25, 2023. P50,000 in payment for transport rental or expenses, ang address po na nakalagay is Olongapo.*

Ms. Kapunan. P-I-17-169, Madam Witness. Whose name, what is the date, the place, and the amount?

Ms. Del Campo. *Ang date po is February 25, 2023, in the amount of P40,000 for the payment of information. Address po is Samar.*

Ms. Kapunan. P-I-17-213, Eduardo Tan. What date and where was it disbursed, and what amount?

Ms. Del Campo. *Nakalagay po sa dokumento, date February 25, 2023. Ang amount po is P150,000 in payment for reward. Ang address po is Masbate.*

The Presiding Officer. With indulgence of Counsel, so as not to belabor the point. Based on your understanding, Ma'am Xylene, *iyong address po bang nakalagay sa ibaba, address kung*

saan ibinigay iyong pera o address ng tao? Sa pagkakaunawa ninyo po.

Ms. Del Campo. Based *po* dito sa—*Dahil po* documents evidencing payment, *iyong* address *po* dito is *iyong* kung saan *po* ibinayad.

The Presiding Officer. So, ang *ibig* sabihin *pro forma* document *po* ba *ian*?

Ms. Del Campo. *Hindi po* ito kasama sa annexes sa Joint Circular.

The Presiding Officer. So, *hindi* ito *pro forma*?

Ms. Del Campo. *Hindi po.*

The Presiding Officer. So, sa pagkakaunawa ninyo lamang *po* na ang address na nakalagay diyan, address kung saan ibinigay?

Ms. Del Campo. Yes *po*.

The Presiding Officer. *Hindi* address kung taga-saan sila?

Ms. Del Campo. *Opo.* Kasi based *po* sa—Ito *po* ay documents evidencing payment, so *iyong* address dito is kung saan *po* binayaran.

The Presiding Officer. And that is reflected in the AOM you issued with respect to the first and second quarter?

Ms. Del Campo. *Hindi po.*

The Presiding Officer. Wala sa AOM *ian*?

Ms. Del Campo. Wala *po*.

The Presiding Officer. Okay. Counsel, you may proceed.

Ms. Kapunan. Mr. Lito Saludores, P-I-17-237. What date was it issued or paid? *Saan ibinayad ang pera, anong date, at anong amount?*

Ms. Del Campo. *Ang* date *po* is February 25, 2023, payment for supplies amounting to P50,000. *Ang* address *po* is Loboc.

Ms. Kapunan. Pangasinan naman. P-I-17-238, isang Janine Bartolin. What date was this disbursed?

Ms. Del Campo. *Ang* nakalagay *po* rito is February 25, 2023, in the amount of ± 50,000 for payment for supplies *po*. *Ang* address, Pangasinan.

Ms. Kapunan. P-I-17-238, Janine Bartolin. I'm sorry. 369. P-I-17-369. Whose name is this?

Ms. Del Campo. Signature lang *po*.

Ms. Kapunan. Walang pangalan. *Saan in-issue? Saan ibinayad itong perang ito?*

Ms. Del Campo. Compostela Valley *po*.

Ms. Kapunan. P-I-17-391, Luilito Agord, please state the date it was paid, the place, and the amount.

Ms. Del Campo. February 25, 2023 *po*, payment for rental of safehouse amounting to P45,000. *Ang* address *po* na nakalagay is Davao City.

Ms. Kapunan. Okay. There are seven remaining acknowledgment receipts here. I'll go over them briefly. Please follow as I mention them.

P-I-17-418, only a signature appears, disbursed in Masbate for P50,000. Again, February 25, 2023.

P-I-17-430 in the name of Andrew Lacerna, issued—disbursed in Nueva Ecija for P100,000, again, dated February 25, 2023. Can you go over it?

P-I-17-431 in the name of Jamil Jaldon, disbursed in Koronadal City for P100,000, also dated February 25, 2023.

An acknowledgment receipt P-I-17-479, no name, signature only, disbursed in Batangas, for the amount of P9,000. Again, dated February 25, 2023.

Jamby Mante, received in Kalinga Apayao, P50,000 on February 25, 2023, Exhibit P-I-17-480.

P-I-17-481, Rona de Vera, received P50,000 in South Leyte, also on February 25, 2023.

And lastly, a signature received in Abra, P50,000, P-I-17-540, also on February 25, 2023. Based on these acknowledgment receipts, do you confirm?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Madam Witness?

Ms. Del Campo. *Opo*.

Ms. Kapunan. That what was stated is accurate based on the records?

Ms. Del Campo. Based *po sa mga* acknowledgment receipts *po, opo*.

Ms. Kapunan. What observation can you make or significance do you draw from these documents presented to you?

Ms. Del Campo. Based *po doon sa* documents *na prinisent* (present) *sa akin, lahat po ito* is dated Feb 25, 2023 *po* with different addresses *po na nakalagay*.

Ms. Kapunan. And on the same date, disbursements on the same date with different addresses. What observation, if any, can you draw from this?

Ms. Del Campo. *Iyon nga po*.

Ms. Kapunan. With different addresses.

Ms. Del Campo. *Opo*.

Ms. Kapunan. Locations. Is this again, to clarify, is this a place where the money was disbursed or where the money was received?

Ms. Ferrer. Your Honor, please. Witness is incompetent, Your Honor, to testify on that matter.

Ms. Kapunan. Your Honor, she is competent.

The Presiding Officer. Based on the document, again, that was the earlier question of the Presiding Officer. Address *ba ito noong binigyan o* address *ito kung saan binigay*?

Ms. Del Campo. Based *po sa* documents, as documents evidencing payment, *kung saan po binigay iyang* address.

The Presiding Officer. Okay. Kindly continue, Counsel.

Ms. Kapunan. *Ang ibig sabihin, kung saan binigay, ang ibig bang sabihin*, correct me if I am wrong, Madam Witness, on the same date *itong mga binigyan ng* confidential funds *ay nasa* different locations *ba*, Madam Witness?

Ms. Del Campo. Based *po sa* documents, *opo*.

Ms. Kapunan. Okay. And based *sa* Joint Circular *na sinabi mo, sino dapat ang mag-distribute* or *mag-disburse ng perang nakalagay dito*?

Ms. Del Campo. It is the responsibility *po ng* special disbursing officer.

Ms. Kapunan. So, *tama bang sabihin*, correct me if I am wrong, *kung mali naman ang* understanding *ko, tama bang sabihin na ang* special disbursement officer *ay sa isang araw ay pinuntahan lahat itong lokasyon na ito? Tama ba ang interpretation ko?*

Ms. Ferrer. Your Honor, please—

Ms. Kapunan. If she knows, Your Honor, she was the one who evaluated these documents.

Ms. Ferrer. Your Honor, that calls for a conclusion of fact.

The Presiding Officer. Witness is not competent to answer the question, Counsel. I think let the document speak for itself that if indeed the SDO is the only officer authorized to disburse the funds, then clearly it is physically impossible to be in all of these locations in one day. And there was earlier admission that the SDO gave the funds to a Colonel Lachica, probably even more. So, that remains to be seen and proven in the coming days.

Please proceed, Counsel.

Ms. Kapunan. Who is the special disbursement officer of the DepEd?

Ms. Del Campo. *Sa DepEd po is si Mr. Edward Fajarda.*

Ms. Kapunan. And based on your definition of a special disbursement officer, *si Mr. Fajarda ang authorized na magbigay ng lahat ng ito, Madam Witness?*

Ms. Del Campo. *Yes po.*

Ms. Kapunan. Okay. Going now—

The Presiding Officer. With the indulgence of Counsel, so, *sa ilalim ng Joint Circular, siya lang walang iba?*

Ms. Del Campo. *Yes po, ito po ay nakasama sa kaniyang responsibility. At based on item 6.1.1 po, hindi po ito puwedeng i-transfer from one accountable to another.*

Ms. Kapunan. So, based on these documents, *kasi sinabi mo si Mr. Fajarda. So, makikita naman natin as observed by the Presiding Officer, these were many locations in one day.*

Ngayon, Mr. Fajarda, as a special disbursement officer, alam mo ba kung may sinabmit (submit) na dokumento si Mr. Fajarda na nag-i-indicate sa COA o COA-ICFAO na in-authorize niya kung sino mang ibang individual na mag-distribute nitong kaperahan na ito sa mga iba-ibang taong ito sa ibang places na ito? Mayroon bang in-attach na letter or acknowledgment si Mr. Fajarda o hindi Mr. Fajarda. Iyong head of agency, si Vice President or DepEd Secretary Sara Duterte, mayroon ba siyang sinabmit na authorization na binigay kay Mr. Fajarda na siya ang disbursement officer para i-delegate sa iba ni Mr. Fajarda iyong pagpunta sa iba-ibang lugar na ito sa isang araw lang? Mayroon bang dokumentong ganoon, na authorization ang tinanggap ng office mo?

Ms. Del Campo. *Ang natanggap po namin na authorization or designation is si VP Sara ang nag-designate kay Mr. Edward Fajarda as special disbursing officer ng Department of Education. Naka-attach po ito doon sa liquidation documents.*

Ms. Kapunan. So, *may certification si Vice President kay Mr. Fajarda. Aside from Mr. Fajarda, mayroon bang ibang pangalan na nakalagay diyan sa dokumento?*

Ms. Del Campo. *Wala po. Ang nakalagay lang po doon is si Mr. Fajarda ang designated na special disbursing officer ng DepEd po for confidential fund.*

Ms. Kapunan. *Punta naman tayo—last batch na ito. Mayroon naman tayong another list, ‘no. Attached to the Response of the Office of the Vice President para sa acknowledgment receipts dated March 15, 2023, liquidation ng Vice President—I’m sorry, ng DepEd. Again, please go over these acknowledgment receipts.*

The Presiding Officer. This is for what quarter, Attorney Kapunan?

Ms. Kapunan. This is for the third—

The Presiding Officer. Third?

Ms. Kapunan. This is for the same quarter, Your Honor.

The Presiding Officer. First and second...

Ms. Kapunan. First and second quarter, Your Honor.

The Presiding Officer. Of 2023?

Ms. Kapunan. Yes, Your Honor. And we are talking about, again, from a list of 1,049 acknowledgment receipts, we have selected a few.

Madam Witness, showing to you several selected ones. I'm showing to you, being flashed on the screen, P-I-17-57, and I will go over this list very briefly if you can follow me.

Adolfo Molina; date, March 15, 2023; Buda, Marilog, Davao City for P50,000.

P-I-17-58, *walang pangalan*, signature only; date, March 15, 2023; Tandag; P30,000.

P-I-17-107, *wala na namang pangalan*, signature only; *binayad sa* Puerto Galera, Mindoro; P65,000; date, the same, March 15, 2023.

Jelyn Espino; Laguna; P50,000; date, March 15, 2023. (P-I-17-108)

Walang pangalan; P-I-17-127; signature only; date, March 15, 2023; *sa* Agusan del Norte; P40,000.

Kay Rex Napoles, *tumanggap ng* P50,000 *sa* Olongapo on the same date, March 15, 2023, P-I-17-128.

Next, Riano Recto, P-I-17-148, *sa* Zamboanga City, P40,000.

Mr. Julio Esguerra, *taga*-Butuan City, *tumanggap ng* P100,000, P-I-17-189 also on March 15, 2023.

Are you following, Madam Witness?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. P-I-17-190, *walang pangalan*, signature only, Davao City, P25,000.

Another P50,000, *walang pangalan*, signature only, P-I-17-226, *na* issued or disbursed *in* Nabunturan.

From Nabunturan, Laguna, P50,000 *sa isang* Naizell T., P-I-17-227.

Isang walang signature *tumanggap sa* Dasmariñas, Cavite, *ng* P65,000, P-I-17-259 on March 15, 2023.

Carmen Sevilano, *taga*-Surigao del Norte, *tumanggap ng* P50,000 on the same date, March 15, 2023, P-I-17-260. *Tama?*

Ms. Del Campo. *Opo*.

Ms. Kapunan. Can you continue?

Ms. Del Campo. *Dito po sa—*

Ms. Kapunan. P-I-17-311—P-I-17-261, *walang pangalan, tama*, signature only, *saan naman* *ito* in-issue?

Ms. Del Campo. Quezon City *po*.

Ms. Kapunan. Sa Quezon City for P65,000.

Ito naman P-I-17-311, *walang pangalan*, signature, Bacoar, P50,000.

Si Alice Crescencio *tumanggap galing* Iligan City, P25,000 on the same date, March 15, 2023, P-I-17-349.

P-I-17-406, *walang pangalan*, signature *lang*, *galing naman* Tarlac, P50,000 on the same day, March 15, 2023.

Walang pangalan, signature *lang*, *galing* Pasay City, *tumanggap ng* P65,000, P-I-17-422.

Isang signature *na tumanggap galing* Calbayog, Samar, P45,000, *walang pangalan*, March 15, 2023, P-I-17-423.

P-I-17-447 again, no name, Compostela Valley, *tumanggap ng* P100,000 on the same day, March 15, 2023.

Another signature received, *ni hindi mabasa ito*, San Juan City, unreadable, P30,000 on the same day, March 15, 2023, P-I-17-468.

Another signature received, *walang pangalan, sa Aginaldo, Ifugao, tumanggap ng* P100,000 on March 15, 2023, P-I-17.

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. Three more, Your Honor, four more.

The Presiding Officer. We get the point, Counsel. We get the point, and it is in the tabulation anyway of the witness.

Ms. Kapunan. Okay. Now, Madam Witness, *sa mga binasa natin at sa mga na-observe mo, anong significance nitong acknowledgment receipts na pinakita sa iyo?*

Ms. Del Campo. *Ito po ang proof of payments po noong confidential fund and base po dito, all dated March 15, 2023, with different addresses po.*

Ms. Kapunan. All dated?

Ms. Del Campo. March 15, 2023.

Ms. Kapunan. So, *sino dapat, based on your Circular, ang nag-disburse nitong mga pondong ito?*

Ms. Del Campo. *Ang dapat po mag-disburse ay ang special disbursing officer.*

Ms. Kapunan. *At sino nga ang special disbursing officer na iyan?*

Ms. Del Campo. *Ito po ay sa DepEd po, Mr. Edward Fajarda.*

Ms. Kapunan. *Kung hindi naman, kasi noong binabasa ko ito, kasi ako Marvel Comics ang binabasa ko, Superman ang favorite ko. Kung hindi man Superman ang isang SDO, kaya ba niyang puntahan, sa palagay mo*

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. ... *lahat na ito?*

The Presiding Officer. Yes, Counsel for the Respondent?

Ms. Ferrer. The question is speculative, Your Honor.

Ms. Kapunan. What is speculative about Superman? He can fly anywhere he wants.

Ms. Ferrer. It's a hypothetical question.

The Presiding Officer. Counsel, move on. Move on, Counsel.

Ms. Kapunan. I will move on, Your Honor.

The Presiding Officer. We get your point.

Ms. Kapunan. Now, Madam Witness, what other documents—Although, can we ask that that “Superman” remain on record, Your Honor?

The Presiding Officer. We did not strike it off, Counsel. The Presiding Officer simply asked you to move on.

Ms. Kapunan. Madam Witness, what other documents, if any? *Ano pang mga dokumento, apart from these acknowledgment receipts for the first and second quarter constituting 1,049 documents—1,049 documents for the first quarter and second quarter. I'm sorry.*

The Presiding Officer. You're in DepEd already, Counsel.

Ms. Kapunan. I'm sorry, 561 and 619, Your Honor, or 1,180 for the DepEd.

Anong other documents ang in-attach ng DepEd?

Ms. Del Campo. To support *po* the payment of rewards, *nag-attach po sila ng* certifications from relevant partners, specifically the Armed Forces of the Philippines *po*.

Ms. Kapunan. And *itong mga* certifications *ng* Armed Forces, if shown to you, would you be able to identify them?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. Showing to you a Certification dated January 1, 2024 issued by Col. Manaros M. Boransing, marked as Exhibit P-I-22-a, stipulated upon by the Defense Counsel, Your Honor, Respondent;

Certification dated December 30, 2023 issued by Col. Carlos B. Sangandaan Jr., previously marked Exhibit P-I-22-b, likewise stipulated upon, common exhibit with the Defense or Respondent;

Certification dated December 5, 2023 issued by Col. Magtanggol Panopio, marked as Exhibit P-I-22-c up to P-I-22-c-1, again, stipulated by Counsel for the Respondent; and

Certification issued by Col. Adonis R. Bajao, previously marked as Exhibit P-I-22-d.

Showing to you these exhibits, Madam Witness, and as well, being flashed on the screen for easy reference of this Honorable Court, what relation do these certifications, which are both Prosecution and Defense exhibits, what do these certifications have in relation to this certification you said was issued by the Armed Forces?

Ms. Del Campo. These are the same certifications *po na naka-attach sa kanilang response*.

Ms. Kapunan. *Anong significance naman ng certifications na ito?*

Ms. Del Campo. *Dito po sa certification na ito, in-attach po nila ito bilang proof of success of the information gathering and/or surveillance activities.*

Ms. Kapunan. *At ito bang proof of success ay compliant sa circular na pinagbasehan mo?*

Ms. Del Campo. During my evaluation *po, opo, nag—compliant po ito doon sa Joint Circular.*

Ms. Kapunan. Okay. What action, if any, *pagkatapos na-receive itong certification? Ito ba iyong sinabi ni Attorney Wamil na pro forma?*

Ms. Del Campo. *Hindi po. Iba po iyon.*

Ms. Kapunan. *Ngayon, ano ang actions taken by your office with regard to this certification, if any?*

Ms. Del Campo. *Ito po—Based po sa evaluation, ito po ay compliant po sa Joint Circular.*

Ms. Kapunan. *At anong in-issue ninyo, if any?*

Ms. Del Campo. For the first and second quarter *po ng 2023*, for the DepEd, we issued *po a Credit Notice*.

Ms. Kapunan. *Anong ibig sabihin? What do you mean by a Credit Notice?*

Ms. Del Campo. A Credit Notice *po is issued pag—pagkatapos ng evaluation ng documents, iyong liquidation documents po are found in order po and passed in audit na.*

Ms. Kapunan. Okay. *Ngayon, itong Credit Notice na in-issue, ito ba ay final?*

Ms. Del Campo. *Ang Credit Notice po, pwede pong—mayroon po sa Rules and Regulations of Settlement of Accounts na pwede pong mai-reopen ang settled account, na gaya po noong pag nag-issue kami ng Credit Notice, pwede pa po itong ma-reopen.*

Ms. Kapunan. *Anong—what reason would you have for reopening a Credit Notice?*

Ms. Del Campo. Under the RRSA *po*, accounts settled can be reopened if before the expiration *noong* three years after the settlement is, *nagkaroon po ng—iyong transaction is tainted with fraud, collusion, and new material evidence po were discovered during the three-year period po na iyon.*

Ms. Kapunan. Okay. We now go, Madam Witness—*punta naman tayo sa third quarter ng liquidation ng confidential funds ng DepEd. Anong participation mo dito?*

Ms. Del Campo. *Ako po ang tasked na mag-evaluate sa response ng DepEd for the third quarter of 2023.*

Ms. Kapunan. And what did you do, if any?

Ms. Del Campo. Currently *po*, this is still under evaluation and review *pa po*.

Ms. Kapunan. *Sinabi mo na ikaw ang in-charge nang pag-evaluate*. What did you evaluate?

Ms. Del Campo. *Noong ma-issue po noong August 8, 2024 iyong Audit Observation Memorandum, nag-submit po ang Department of Education ng response noong August 27, 2024.*

Ms. Kapunan. *Nag-mention ka—you mentioned an AOM, if shown to you, would you be able to identify the same?*

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Showing to you, Madam Witness, an AOM, please go over it. For the *Record*, this was previously marked as Exhibit P-I-21-c. It is an AOM dated August 8, 2024, stipulated upon by Defense Counsel or Counsel for the Respondent. Is this the same document that you received?

Ms. Del Campo. Yes *po*, *ito po iyong same Audit Observation Memorandum na in-issue po namin sa DepEd*.

Ms. Kapunan. On the third page—please go to the third page. There appears to be a signature over the name Nilda Plaras, whose signature is this, if you know?

Ms. Del Campo. *Si Assistant Commissioner Nilda Plaras po, ang officer-in-charge ng ICFAO noong panahon na na-issue itong AOM.*

Ms. Kapunan. And you said earlier, you are familiar with her signature.

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Now, what were the findings in this AOM?

Ms. Del Campo. *Iyong AOM po na ito is na-issue because, first, iyong submitted liquidation documents lack documents evidencing payment; pangalawa po, iyong payment of rewards were not supported with documents evidencing success; iyong third po is hindi nakalagay sa PFP iyong specific confidential activities na magiging basis ng disbursement for confidential fund; pang-apat po, iyong disbursement voucher, hindi nakalagay iyong specific period or duration ng implementation po ng confidential activities; at iyong panglima po, mayroon pong pinaggamitan iyong confidential fund na purchase of information relative to car loan scams, whose victims are mostly personnel of the Department of Education.*

Ms. Kapunan. Madam Witness, this document is being flashed on the screen. Let us go to your first finding. Okay. *Ano ang dahilan kung nag—dahil nag-issue ka ng finding na iyon, iyong first finding na sinabi mo?*

Ms. Del Campo. *Hindi po—ito po, iyong first finding, hindi po kasi na-submit iyong documents evidencing payment po to support the liquidation, kaya po nakasama siya sa AOM.*

Ms. Kapunan. And what is the significance of this non-submission, if any?

Ms. Del Campo. *Hindi po namin makikita kung sino-sino po iyong*

binayaran at recipients noong confidential fund. Dito po kasi makikita iyon sa documents evidencing payments.

Ms. Kapunan. *Iyong second finding mo na naka-flash sa screen, ano ang significance nitong finding mo?*

Ms. Del Campo. *Based po doon sa isinabmit (submit) nila na Accomplishment Report, mayroon pong pinaggamitan ng payment of rewards amounting to P6,371,000 na wala pong attachment ng documents evidencing success po.*

Ms. Kapunan. Okay. And your third findings?

Ms. Del Campo. *Hindi po nakalagay sa Physical and Financial Plan iyong specific confidential activities na paggagamitan ng confidential fund.*

Ms. Kapunan. Why is this significant?

Ms. Del Campo. *Para po ma-check kung paano nila gagamitin—dito po kasi sa Physical and*

Financial Plan, dito nakikita kung paano nila gagamitin iyong confidential fund nila. Dito po sa isinabmit (submit) nila, hindi naka-specify kung anong confidential activities po.

Ms. Kapunan. Okay. Iyong fourth, iyong fourth finding ninyo. Ano itong significance kung bakit nakalagay diyan sa AOM?

Ms. Del Campo. Under Item 6.1.5 po ng Joint Circular, dapat nakalagay sa disbursement voucher iyong duration ng implementation ng cash—ng project. Pero iyong naka-attach po na disbursement voucher, hindi po nakalagay iyong period.

Ms. Kapunan. Okay. And your last finding, what is the reason bakit nakalagay iyan sa AOM?

Ms. Del Campo. Iyon pong Accomplishment Report nila, mayroon po silang ibinayad for purchase of information for doon nga po relative to car loan scams na hindi kasama doon sa enumeration, at hindi intended to support the mandate of the operation of the Department of Education. Kaya po nakasama po siya sa AOM.

Ms. Kapunan. Madam Witness, after this AOM was issued and you have furnished the DepEd, correct?

Ms. Del Campo. Opo.

Ms. Kapunan. Ano ang ginawa ng DepEd, if any?

Ms. Del Campo. Noong na-receive po nila ito, nag-submit po sila ng response noong August 27, 2024.

Ms. Kapunan. Your Honor, please, this response being referred to by the witness is a stipulated document, it is Exhibit P-I-21-D, now being shown to the witness.

Madam Witness, is this the same response?

Ms. Del Campo. Opo, ito po iyong same response na isinabmit sa amin ng DepEd po.

Ms. Kapunan. And, Madam Witness, what documents, if you recall, were attached to this response of the DepEd?

Ms. Del Campo. Nag-submit po sila ng mga acknowledgment receipts as documents evidencing payments; nag-submit din po sila ng mga certification from the Armed Forces of the Philippines to support the payment of rewards po; and nag-submit din po sila ng accomplished na disbursement voucher, na nakalagay po doon iyong period covered by the cash advance.

Ms. Kapunan. Okay. You mentioned several acknowledgment receipts, and we have selected a few acknowledgment receipts.

Your Honor, please, the import of these acknowledgment receipts are the same as the first and second set—they indicate, Your Honor, and by way of manifestation, they indicate that all of these acknowledgment receipts were issued and the amounts disbursed on one date, August 9, 2023, to different people in different locations.

The Presiding Officer. Does the witness have a tabulation and/or summary?

Ms. Del Campo. Yes po, Your Honor.

Ms. Kapunan. Yes, Your Honor, we have a tabulation and summary.

The Presiding Officer. Previously marked, not yet, Counsel?

Ms. Kapunan. It has not been marked, Your Honor, and we request that this, after identification by the witness, be marked as Exhibit P-I-35. Tabulation being shown or being furnished Counsel for the Respondent and this Honorable Court.

The Presiding Officer. Kindly furnish Counsel for Respondent as well as the Presiding Officer with a copy of your tabulation.

Miss Xylene, kayo po ang gumawa ng tabulation na ito?

Ms. Del Campo. Opo.

The Presiding Officer. *Tulad ng paghahanda at tabulation na ginawa ninyong—nauna ninyong ginawa para sa ibang quarters ng OVP at ng DepEd?*

Ms. Del Campo. Yes *po*, Your Honor.

The Presiding Officer. You may proceed, Counsel.

Ms. Kapunan. Your Honor, please, this tabulation—Okay. On its face, this tabulation will show the acknowledgment receipts. And, as earlier indicated, we will dispense with going over selected acknowledgment receipts, the purpose of which, principally, is to show that one single disbursement officer, Mr. Fajarda, issued on August 9, 2023, to several locations from Luzon, Visayas, Mindanao, on one date, Your Honor, and I can ask the witness to confirm this based on the documents.

The Presiding Officer. Not all, Counsel, but several.

Ms. Kapunan. Several selected documents.

The Presiding Officer. Several, yes.

Ms. Kapunan. I can name the markings: P-I-17-1246, P-I (dash—all P-I-17 sub-marked 1246; 1247; 1281; 1320; 1321; 1361; 1398; 1399; 1435; 1486; 1587; 1626; 1627; 1628; 1745; 1820; 1871; and 1872, all indicating several recipients, several locations, one date, and I will ask the witness—who is the disbursing officer for this third quarter of the DepEd?

Ms. Del Campo. *Ang SDO po ng DepEd ay si Mr. Edward Fajarda.*

Ms. Kapunan. And by virtue of his function, it is Mr. Fajarda who, presumably, Madam Witness, disbursed these amounts?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Any authorization from the DepEd Secretary, Vice President Sara Duterte, indicating or designating another person outside Mr. Fajarda to disburse these various amounts in various places on this date, Madam Witness? Any document attached to the submission?

Ms. Del Campo. *Wala po, iyang designation lang po ni Mr. Fajarda.*

Ms. Kapunan. Among these—just for the *Record*, Your Honor, among these submissions is the name of Joel Chua. He—

The Presiding Officer. That is not Chua, Counsel, that is Chiu.

Ms. Kapunan. Yes, Your Honor.

Upon verification by this representation, he denies any family connection, Your Honor.

The Presiding Officer. Proceed, Counsel.

Ms. Kapunan. The signature—Madam Witness, will you go through this document?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. The signature is in Chinese character. Can we ask the fellow Prosecutor to identify his signature?

The Presiding Officer. That would be self-serving, Counsel. Move on, Counsel. Move on.

Ms. Kapunan. Okay. Madam Witness, outside these acknowledgment receipts you said that there was no separate document indicating any authorized officer to disburse these amounts in different places on said date. Madam Witness, do you confirm that?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Okay. Outside acknowledgment receipts, what other document was submitted by way of liquidation?

Ms. Del Campo. To support *po* the payment of rewards, they submitted certifications from the Armed Forces of the Philippines.

Ms. Kapunan. And if these certifications are shown to you, Madam Witness, would you be able to identify the same?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Showing to you, Madam Witness, and being flashed on the screen with the kind indulgence of the Honorable Presiding Officer, there is a certification dated September 25, 2023, issued by Jaicris Jan Mendoza, Prosecution Exhibit P-I-22-E, stipulated as well by the Defense; certification dated December 10, 2023, P-I-22-f, also issued by Jaicris Jan F. Mendoza; Exhibit P-I-22-g is a certification, dated December 12, 2023, issued by an Adonis R. Bajao. Likewise, a Defense' exhibit, Your Honor; Certification dated July 1, 2024, issued by a certain Darren E. Comia, Prosecution's Exhibit P-I-22-h. All certifications, Your Honor, for—are likewise Defense's documents.

The Presiding Officer. Do you confirm, Madam Witness, that these were part of the submissions of the DepEd?

Ms. Del Campo. Yes *po*, *kasama po iyon sa response nila sa AOM* for the third quarter *po*.

The Presiding Officer. Okay.

Ms. Kapunan. What relation do these certifications have to the one you mentioned? Are they the same?

Ms. Del Campo. Yes *po*, *pareho pong certification*.

Ms. Kapunan. And what observations have you made as regards these certifications?

Ms. Del Campo. Currently *po*, the review and evaluation *po noong* compliance *na ito ng* Department of Education *po* is under review *pa po at* evaluation.

Ms. Kapunan. In connection with the earlier certifications which I asked you, you mentioned certain credit notice. And you said that these credit notices, which you issued, is not final, correct?

Ms. Del Campo. Yes *po*.

Ms. Kapunan. Now tell us what would be the grounds for opening a credit notice, if you know?

Ms. Del Campo. *Ang account po na* settled can be reopened *kasi po* if the transaction is tainted with fraud, collusion, or new material evidence were discovered before *mag-expire iyang* three-year period *po ng* settlement *noong* account.

Ms. Kapunan. Okay. So, you're saying that even if because of the certifications submitted as to these activities a credit notice was issued in the three-year period, your office, COA-ICFAO can reopen on the grounds of—what are these grounds again?

Ms. Del Campo. If the transaction is tainted with fraud, collusion or—

Ms. Kapunan. What do you mean by fraud in the transactions?

Ms. Del Campo. *May anomalya po sa paggamit po noong pondo*.

Ms. Kapunan. Okay. *Ano pa?*

Ms. Del Campo. And new material evidence were discovered *po* before the expiration of the three-year period.

Ms. Kapunan. The second ground. And the third ground is?

Ms. Del Campo. *Iyon po, may na-discover po na* material evidence *po* before the expiration of the three-year period.

Ms. Kapunan. Now, Madam Witness, what is the current status of the evaluation of the response? You said earlier *na dahil sa* action taken by the COA-ICFAO *nag-respond ang* DepEd. What is the status of that response...

Ms. Del Campo. *Ine-evaluate pa po—*

Ms. Kapunan. ...for the third quarter September 30—July 12 to September 30, 2023, if you know?

Ms. Del Campo. This is until—no—under evaluation and review *pa po*.

Ms. Kapunan. Under evaluation?

Ms. Del Campo. *Opo.*

Ms. Kapunan. *Bakit hanggang ngayon eh under evaluation?*

Ms. Del Campo. *Ito po ay under evaluation pa din hanggang ngayon kasi po this transaction composed of voluminous documents na kailangang pag-aralan. And sa review process po namin, pagkatapos ko po itong ma-evaluate, iaakyat ko po ito sa aking Division Chief na extensive din po ang kaniyang pagdadaanang review. And after po sa Division Chief, aakyat pa po ito sa Officer-in-Charge ng ICFAO for further review po.*

And sa ICFAO po kasi, kulang po kami sa manpower and marami po kaming nare-receive na iba-ibang documents from different agencies po na mayroon ding ganito karaming mga documentations po. And itong mga agencies pong ito, fair po ang aming pag-treat sa kanila kaya po binibigyan namin ng pansin lahat po.

Ms. Kapunan. Okay, now, Madam Witness, in his testimony when asked, Mr. Wamil said that based on his evaluation, during the period that he was there with the COA-ICFAO, he made a finding that these documents submitted by the OVP and the DepEd, for that particular period he was in the COA-ICFAO, were irregular based on the guidelines or based on the joint circular that you cited.

Ms. Del Campo. Yes.

Ms. Kapunan. To you, Madam Witness, you who took over these same documents that were submitted and who made your own independent evaluation, what would you say? Are these documents—what can you say about these documents submitted by the OVP and the DepEd based on your post-audit evaluation?

Ms. Del Campo. *Iyong sa OVP po, ito ay irregular po dahil hindi ito naging compliant sa joint circular. During the time naman po na in-evaluate ko ang Department of Education, compliant po sila sa joint circular, pero gaya nga po ng nasabi, puwede pong ma-reopen itong settled account ng Department of Education po.*

Ms. Kapunan. *Mayroong sinayt (cite) si Attorney Wamil na prima facie evidence, ano. You are not a lawyer but under accounting rules, tama ba iyong interpretation na 'pag hindi kumpleto, if the documents submitted based on 8.3 of the joint circular—if the documents submitted by way of liquidation of confidential funds are not complete, ano ang epekto nito based on the circular?*

Ms. Del Campo. Under po sa joint circular doon sa under 8.1 nga po, failure of the accountable officer to liquidate is a *prima facie* evidence na nagamit po ito for personal use and benefit.

Ms. Kapunan. Now, you said that *prima facie*—failure of the accountable officer. At earlier tinanong ka, ang accountable officer ng OVP is the head of agency, meaning, sino iyon?

Ms. Del Campo. *Si Vice President Sara Duterte po.*

Ms. Kapunan. At sa DepEd naman, sino ang head of agency?

Ms. Del Campo. During the time po noong 2023, it is Vice President Sara Duterte din po.

Ms. Kapunan. And under 8.3, ang presumption is naging used, to quote, paki-quote, “used for personal ...?”

Ms. Del Campo. *Sabi po sa 8.3, “failure of the accountable officer to liquidate is a prima facie evidence that he or she used the missing funds for personal use and benefit.”*

Ms. Kapunan. Madam Witness, my last question to you, Madam Witness, let us go back to this hearing in the Committee on Good Government Accountability and there is an admission there, Madam Witness, in your testimony here, that you in that hearing, Gina Acosta, Chief of Staff of the VP, admitted—of the SDO, I am sorry—admitted to transferring confidential funds, *tama*, to Colonel Lachica?

Ms. Ferrer. Your Honor, please.



The Presiding Officer. Yes, Counsel for the Respondent.

Ms. Kapunan. There is no question yet, Your Honor.

Ms. Ferrer. Your Honor, the exact wordings of the Counsel cannot be verified without reflecting the TSNs that she is referring to.

Ms. Kapunan. Your Honor, I am referring to the testimony of this witness. Besides, in the previous hearing, there is judicial notice already of the TSNs.

The Presiding Officer. No, that is not it, Counsel. Witness already admitted in her earlier testimony that she was there when Gina Acosta testified before the House of Representatives and heard her testify. Based on her recollection of what she said, she may answer. Kindly finish your last question, Counsel.

Ms. Kapunan. I forgot. You repeat my question. What did I say? *Wala pa akong* question. Okay, based on this admission of Gina Acosta that indeed confidential funds were transferred, the disbursement of confidential funds were transferred to Colonel Lachica. What about in relation to the DepEd funds?

Ms. Del Campo. *May nabanggit din po noon si Mr. Fajarda na ibinibigay niya iyong confidential fund kay Colonel Nolasco po.*

Ms. Kapunan. Again?

Ms. Del Campo. *May naging* admission under oath—

Ms. Kapunan. May admission din under oath. In the same hearing, Madam Witness?

Ms. Del Campo. Yes po.

Ms. Kapunan. What was that admission?

Ms. Del Campo. *Sinabi din po ni Mr. Edward Fajarda na SDO ng DepEd na binibigay po niya iyong cash advance for confidential fund kay Colonel Nolasco.*

Ms. Kapunan. And who is this Fajarda?

Ms. Del Campo. *Siya po ang Special Disbursing Officer ng Department of Education.*

Ms. Kapunan. And who is Nolasco?

Ms. Del Campo. *Isa po siya sa mga—part po siya ng Vice Presidential and Security Protection Group.*

Ms. Kapunan. So, our understanding is, in the Office of the Vice President, an admission of Gina Acosta that disbursement was given to some other person. The same admission was made by the DepEd SDO Fajarda that disbursement of the funds was given to somebody else, Madam Witness?

Ms. Del Campo. Yes po, *tama po.*

Ms. Kapunan. And what observation—As a COA-ICFAO State Auditor, what significance or observation can you make from these admissions by both Gina Acosta and Fajarda?

Ms. Del Campo. This is a violation po of the joint circular, specifically *iyong* Item 6.1.1, *na hindi dapat ito i-transfer* from one accountable officer to another.

Ms. Kapunan. No further questions, Your Honor.

The Presiding Officer. Thank you, Counsel.

It is 2:28. I promised the Senate President we will finish by 2:30, so that we can convene session at 3:00 p.m.

Counsel for the Respondent, Attorney Kristine, can you do your cross tomorrow instead of today?

Ms. Ferrer. I can, Your Honor.

Ms. Kapunan. Your Honor, before I turn over to our head, Your Honor, may I make just this manifestation for the record, just to clear.

The Presiding Officer. Yes, Counsel.

Ms. Kapunan. For avoidance, Your Honor, although we did mark the tabulations and summaries, Your Honor, for avoidance of doubt and for the record, the authenticity of the ARs are deemed established when the parties agreed and agreed with the dispensing of identification, Your Honor.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. So noted.

Ms. Ferrer. Your Honor, please. Just a counter-manifestation to her statement.

The Presiding Officer. You may do so, Counsel, before we adjourn.

Ms. Ferrer. There was no such admission, Your Honor, and there was no dispensing of identification of the ARs. Precisely, that is what the witness did today, Your Honor. Thank you.

The Presiding Officer. It is without prejudice to Counsel for the Respondent crossing the witness using their copies of the AR, which reminds the Presiding Officer to also remind the Counsel for the Respondent to kindly submit copies of their pre-marked documents, specifically the ARs covering the last quarter of 2022 and the first three quarters of 2023 for both the OVP and the DepEd insofar as the first three quarters of 2023 is concerned. If not within today, by tomorrow, Counsel. Attorney Kristine?

Ms. Ferrer. Yes, Your Honor. We'll do that.

The Presiding Officer. Thank you very much. What is the pleasure of Senator-Judge Zubiri?

MANIFESTATION OF SENATOR-JUDGE ZUBIRI

Observing that the previous week's legislative sessions had generally lasted only two to three hours, Senator-Judge Zubiri proposed holding regular legislative sessions at 10:00 a.m., and commencing the impeachment trial at 3:00 p.m. He explained that the revised schedule would ensure the uninterrupted presentation of evidence and cross-examination of witnesses, while allow the public to follow the proceedings without interruption.

He further suggested that the impeachment trial be allowed to continue until 10:00 p.m. or as necessary, to facilitate the expeditious disposition of the proceedings.

The Presiding Officer stated that the schedules could be adjusted as necessary, provided that the parties were given at least one day's notice of any change.

Senator-Judge Cayetano (P) recalled that the existing schedule had previously been discussed in caucus and suggested that it be taken up again, particularly in view of the absence of the Minority Floor Leader. The Presiding Officer stated that no change in schedule would be made during the week.

Senator-Judge Zubiri agreed to await the attendance of the Minority Leader and to further consider the proposal in caucus, with the view to reaching a decision the following day. Senator-Judge Villar (C) likewise suggested that the matter be discussed in caucus, recalling that a previous proposal to move the legislative session from 10:00 to 10:30 a.m. had also been referred to a discussion in caucus.

The Presiding Officer stated that there was no urgency to resolve the matter.

Senator-Judge Zubiri clarified that he merely intended to place the proposed schedule on record and give the parties sufficient notice should it take effect the following Monday.

MANIFESTATION OF REPRESENTATIVE CHUA

Representative Chua stated that it was the Panel for Prosecutors' understanding that its witness list for the following week was due that day. He however noted that witnesses Marivic Pareja, Gina Acosta, and Edward Fajarda—had already been subpoenaed to appear at the next day's hearing. He thus requested to submit the names of their witnesses after the following day's, depending on its outcome.

The Presiding Officer granted the request, noting that the mentioned witnesses had already been subpoenaed to appear at the following day's hearing. He stated that, should any of the witnesses not be presented during the hearing, new subpoenas would be issued for their appearance, together with subpoenas for any additional witnesses to be presented the following week.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until 10:00 a.m. on Wednesday, August 12, 2026.

It was 2:35 p.m.

I hereby certify to the correctness of the foregoing.

Approved on August 12, 2026

Atty. RENATO N. BANTUG JR.
Clerk of Court

